

Bhubaneswar Development Authority (Planning and Building Standards) Regulations, 2001

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Rule

BHUBANESWAR-DEVELOPMENT-AUTHORITY-PLANNING-AND-BUILDING-STANDARDS-REGULATIONS-2001 of 2001

Published on 8 October 2001

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Bhubaneswar Development Authority (Planning and Building Standards) Regulations, 2001

Published vide Notification No. 5726-BDA, the Bhubaneswar, Dated 8th October, 2001, Published vide Orissa Gazette Extraordinary No. 1988 dated 29.10.2001

Whereas the draft Bhubaneswar Development Authority (Planning and Building Standard) Regulations, 2000 was published as required by Sub-section(I) of Section 125 of the Orissa Development Authorities Act, 1982 (Orissa Act 14 of 1982

), in the Extraordinary Issue No. 1318 of the Orissa Gazette, dated the 18th September 2000, inviting objections and

suggestions from all persons likely to be affected thereby till the expiry of a period of thirty days from the date of publication of the said notification in the Orissa Gazette.

And whereas objections and suggestions received during the stipulated period in respect of the said draft have been duly considered by the State Government.

Now, therefore, in exercise of the powers conferred by Sub-section (1) read with clauses (viii) to (xviii) of Sub-section (2) of Section 124 of the Orissa Development Authorities, Act, 1982 and with the previous approval of the State Government, the Bhubaneswar Development Authority do here by frame the following regulations, namely:-

Part-I Administration

1.

Short title, extent and commencement.

(1)

These Regulations may be called the Bhubaneswar Development Authority (Planning and Building Standards) Regulations, 2001.

(2)

They shall extend to the whole of the area within the jurisdiction of Bhubaneswar Development Authority.

(3)

They shall come into force on the date of their publication in the Orissa Gazette.

2.

Definitions.

- In these Regulations, unless the context otherwise requires :

(1)

"Act" means the Orissa Development Authorities Act, 1982;

(2)

"air-conditioning" means the process of treating air so as to control simultaneously its temperature, humidity, cleanliness and distribution to meet the requirement of conditions space;

(3)

"Air Port Reference Point" means a designated point which is established in the horizontal plane at or near the geometric centre of the landing area;

(4)

"alteration" means a change from one occupancy to another, or a structural change, such as an addition to the area or height, or the removal of part of a buildings or any change to the structure such as the construction of, cutting into or removal of any wall, partition, column, beam, joint, floor or other support, or a change to or closing of any required means of ingress or egress, or a change to the fixtures or equipment.

(5)

"Appendix" means an appendix appended to these regulations;

(6)

"approved" means approved by the Authority;

(7)

"Art Commissioner" means the Commission constituted under Sub-section (1) of Section 88;

(8)

"Authority" means the Bhubaneswar Development Authority and does not include its employees acting individually. The powers and responsibilities of the Authority under this Regulation can not be delegated, unless specifically provided for in this Regulation, the Act, the Rules or, unless notified by the government;

(9)

"balcony" means a horizontal cantilevered projection, including a hand rail or balustrade, to serve as passage or sitting out place;

(10)

"barsati" means a habitable room (including kitchen) on the roof of a building with or without toilet/kitchen;

(11)

"basement or cellar" means lower storey of a building not less than 0.9 metres and not more than 1.2 metres above the ground level;

(12)

"basti area" means an area declared as such under a development plan and in the absence of such declaration, any area comprising old settlements covering such extent of lands as may be determined/ by the Authority in consultation with concerned Local Body;

(13)

"basti plot" means a plot having a width ranging between 4.0 and 6.3 metres, the depth being more than three times the width, and located in a basti area;

(14)

"builder" means an applicant, land owner, contractor, holder of power of attorney of the land owner, the partnership, trust or company which has any responsibility in construction of a building for commercial purposes.

Note - The Bhubaneswar Development Authority will be the builder for its own construction.

(15)

"building" means any structure for whatsoever purpose and of whatsoever materials constructed and every part thereof whether used as human habitation or not and includes foundation, plinth, walls, floors, roofs chimneys, plumbing and building services, fixed platforms, verandah, balcony, cornice or projection, part of a building or anything affixed thereto or any wall enclosing or intended to enclose any land or space and signs and outdoor display structures;

Explanation - Tents, shamianas, tarpaulins, shelters, etc., put up for not more than fifteen days, shall not be considered as building;

(16)

"building accessory" means a subordinate building use of which is incidental to that of a principal building on the same plot such as garage, coal or fuel shed, peons, choukidars, or domestic servants quarters, etc.;

(17)

"building height" means the vertical distance measured in the case of flat roofs, from the average level of the centre line of the adjoining street to the highest point of the building adjacent to the street; and in the case of pitched roofs, up to the point where the external surface of the outer wall intersects the finished surface of the slopping roof and in the case of gables facing the road, the mid-point between the eaves level and the ridges;

Explanation - If the building does not abut on a street, the height shall be measured above the average level of the ground around and contiguous to the building;

(18)

"building line" means the line up to which the plinth of a building adjoining a street or an extension of a street or on a future street may lawfully extend and includes the lines prescribed in any development plan in operation of any area under the jurisdiction of the Authority or specification indicated in any Town Planning or Development Scheme, or in these Regulations;

(19)

"chajja" or "sun-shade" means a sloping or horizontal structural overhang, usually provided over openings on external walls to protect it from sun and rain;

(20)

"Chawl" means a building so constructed as to be suitable for letting out as separate tenements each consisting of not more than two rooms and with common sanitary arrangements;

(21)

"Chimney" means an upright shaft containing and encasing one or more flues provide for the conveyance to the outer air of any product of combustion resulting from the operation of any heat producing appliance or equipment employing solid, liquid or gaseous fuel;

(22)

"Combustible materials" means a material, which burns or adds to a fire when used for combustibility in accordance with good practice;

(23)

"conversion" means the change of an occupancy to another occupancy or change in building structure or part thereof resulting in change of space or use requiring additional occupancy certificates;

(24)

"corner plot" means a plot at the junctions of and fronting on two or more intersecting streets;

(25)

"courtyard" means a space permanently open to the sky, enclosed fully or partially by buildings and may be at ground level or any other level within or adjacent to a building;

(26)

"covered area" means:

(i)

in respect of ground floor, ground area covered immediately above the plinth level by the building but does not include the open space covered by-

(a)

garden, rookery, well and well-structures, rain water harvesting structures, plant nursery, water-pool (if uncovered) platform round a tree, tank, fountain, bench, chabutra with open top and unenclosed on sides by walls boundary wall, swing, and area covered by chaza without any pillars etc touching the ground;

(b)

'drainage culvert conduit', catch-pit, gully pit, inspection chamber, gutter and the like;

(ii)

in respect of first and subsequent floors, all such areas which are not open to the sky;

(27)

"Cul-de-sac" means such means of access having length from 150 to 275 metres with an additional turning space at distance of at least 150 metres such turning space being not less than 81 square metres in area having no dimension less than 9 metres;

(28)

"detached building" means a building whose walls and roof are independent of any other building with open spaces on all sides;

(29)

"Development Plan" includes any development plan either interim or comprehensive or zonal plan in operation for any area under the jurisdiction of the Authority;

(30)

"Deviation" means any construction made in departure from the approved plan by way of internal alteration or additions, modifications in the total floor area, coverage, floor area ratio (FAR), setbacks, height, parking space, provision of public utilities etc.;

(31)

"Director Town Planning" means the person appointed as Director of Town Planning under Sub-section (1) of Section 3 of the Orissa Town Planning and Improvement Trust Act, 1956 (Orissa Act 10 of 1957);

(32)

"drain" means a line of pipes including all fitting and equipment, such as manholes, inspection chamber, traps, gullies and floor traps, used for the drainage of a building or a number of buildings, or yards appurtenant to the buildings within the same curtilage and includes open channels used for conveying surface water;

(33)

"drainage" means the removal of any liquid by a system constructed for this purpose.

(34)

"enclosed stair-case" means a stair-case, separated by fire resistant walls from the rest of the building;

(35)

"existing building or use" means a building, structure or its use as sanctioned/approved/regularised by the competent authority, existing before the commencement of these Regulations;

(36)

"exit" means a passage, channel or means of egress from any building, storey or floor area to a street or other open space of safety;

(37)

"external wall" means an outer wall of a building not being a part wall even though adjoining to a wall of another building and also means a wall abutting on an interior open space of a building;

(38)

"Fire alarm system" means an arrangement of call joints or detectors, sounders and other equipments for the transmission and indication of alarm and sometimes used as signals for testing of circuits and whenever required for the operation of auxiliary services. This device may be workable automatically or manually to alert the occupants in the event of fire;

(39)

"Fire lift" means one type of lift specially designed for use by fire service personnel in the event of fire;

(40)

"Fire proof door" means a door or shutter fitted to a wall opening, and constructed and erected with the requirement to check the transmission of heat and fire for a specified period;

(41)

"floor" means the lower surface in a storey on which one normally walks in a building.

Explanation - The general term "floor" unless otherwise specifically mentioned shall not refer to a "mezzanine floor";

Note - The sequential numbering of floor shall be determined by its relation to the determining entrance level. For floors at or wholly above ground level the lowest floor in the building with direct entrance from the road/street shall be termed as ground floor. The other floors above ground floor shall be numbered in sequence as floor-I, floor-II, etc. with number increasing upward;

(42)

"floor area ratio (FAR)" means the quotient obtained by dividing the total covered area (plinth area) on all floors with the area of the plot;

$$FAR = \frac{\text{Total covered area of all floors}}{\text{Plot area}}$$

(43)

"Form" means a form appended to these regulations;

(44)

"Foundation" means that part of a structure which is in direct contact with and meant for transmitting loads to the ground;

(45)

"Gallery" means an intermediate floor or platform projecting from a wall of auditorium or a hall providing extra floor area, additional setting accommodation, etc. It shall also include the structures provided for seating in stadia;

(46)

"Garage-private" means a building or a portion thereof designed or used for parking of private owned motor driven or any other vehicles;

(47)

"Garage-public" means a building or portion thereof, designed or used for repairing, servicing,- hiring, selling or parking of motor driven or any other vehicles;

(48)

"Group Housing" means, apartment, or multi-storeyed housing for more than three dwelling units, where land is owned jointly and the construction is undertaken by a single agency.

(49)

"Habitable room" means a room occupied or designed for occupancy by one or more persons for study, living, sleeping, eating, cooking if it is used as a living room, but does not include bathrooms, water-closet compartments, laundries, serving and storage pantries, corridors, cellars, attics and spaces that are not used frequently or during extended periods;

(50)

"height of the building" means the height measured from the average level of the centre line of that portion of the street on which the site abuts;

(51)

"Heritage Zone" means the area as delineated in Comprehensive Development Plan.

(52)

"latrine-connected" means a latrine connected to the municipal sewer system;

(53)

"latrine-unconnected" means a latrine not connected to the municipal sewer system; it may be connected to a septic tank or suitable treatment or disposal system;

(54)

"ledge" means a shelf-like projection, supported in any manner whatsoever, except by means of vertical supports within a room itself but not having projection wider than 0.9 metre and at a minimum clear height of 2.2 metres from the floor level;

(55)

"loft" means an intermediary floor between two floors on a residual space in a pitched roof, above normal floor level, which is constructed or adopted for storage purposes;

(56)

"masonry" means an assemblage of masonry units properly bonded together with mortar;

(57)

"mezzanine floor" means an intermediate floor between two floors, above ground level, accessible only from the lower floor;

(58)

"multi-storey or high rise building" means a building whose height is more than 15 metres or more measured from the average level of the central line of the street on which the site abuts, or more than four floors excluding basement or stilt;

(59)

"non-combustible material" means a material which does not burn nor add heat to a fire when tested for combustibility in accordance with good practice;

Explanation - All stair-case rooms, lift rooms, chimney and elevated tanks above the topmost floor and architectural features shall not be included in the number of floors in the calculation of the height of the building if the total height of such additional construction shall not exceed three metres.

(60)

"non-conforming use of a building or land" means the use of a building or land existing at the time of commencement of these Regulations, and which does not conform to the Regulations pertaining to the zone in which it is situated;

(61)

"Occupancy or use group" means the principal occupancy for which a building or a part of a building is used or intended to be used;

Explanation-I - For the purposes of classification of a building according to occupancy, an occupancy shall be deemed to include the subsidiary occupancies which are contingent upon it.

Explanation-II-The classification of buildings according to occupancy are as follows :-

(a)

Residential Buildings

These shall include any building, in which sleeping accommodation is provided for normal residential purposes with or without cooking or dining or both facilities, including one or two or multi-family dwellings, lodging dormitories, apartment houses, flats and hostels.

(b)

Institutional Buildings

These shall include any building or part thereof which is used for purposes such as medical or other treatment or care of persons suffering from physical or mental illness, disease, infirmity, care of infants, convalescents or aged persons and for penal or correctional detention in which the liberty of the inmates is restricted and special training centres. Institutional buildings ordinarily provide sleeping accommodation for the occupants and specialised non-commercial training centres. It includes hospitals, sanatoria, custodial institutions and penal institutions like jails, prisons, mental hospitals and reformatories. These shall include any building used for school, college or day care purposes involving assembly for instruction education or recreation where it is a part of education.

(c)

Assembly Buildings

These shall include any building or part of a building where groups of people congregate or gather for amusement, recreation, special, patriotic, civil travel and similar purposes, for example - theatres, motion picture houses, assembly halls, auditoria, libraries, exhibition halls, museums, skating rinks, gymnasium, restaurants, dance halls, club rooms, passenger stations, and terminals of air, surface and other public transportation services, recreation parlours and stadia. These shall include any building used for religious purposes like prayers, puja, worship, religious or spiritual

congregation, discourses, rituals and functions.

(d)

Commercial Buildings

These shall include any building or part of a building which is used as shop, stores, market for display and sale of merchandise either wholesale or retail, office storage or a service facilities incidental to the sale of merchandise and located in the same building shall be included under this group. These shall include any building or part of a building which is used for transaction of business for the keeping of accounts and records for similar purpose by any Government or local authority or a body corporate, or a company or a person or group of persons.

(e)

Industrial Building

These shall include any building or part of a building or structure, in which products or materials of all kinds and properties are fabricated, assembled or processed like assembly plants, laboratories, power plants, smoke houses, refineries, gas plants, mills, dairies, factories etc.

(f)

Storage Buildings

These shall include any building or part of building used primarily for the storage or sheltering of goods, wires, merchandise, like warehouses, cold storages, freight depots, transit sheds, store houses, garages, hangers, truck terminals, grain elevators, bams and stables.

(g)

Hazardous Buildings

These shall include any building or part of a building which is used for the storage, handling, manufacture or processing of highly combustible or explosive materials or products which may produce poisonous fumes or explosions for storage, handling, manufacturing or processing which involve highly corrosive toxic or noxious alkalis, acids or other liquids or chemicals producing flame, fumes and explosive poisonous, irritant or corrosive gases, and for the storage, handling or processing of any material producing explosive, mixtures or dust for which result in the division of matter into fine particles subject to spontaneous ignition,

(62)

"open space" or (setback) means an area forming an integral part of the plot, left open to the sky;

(63)

"Parapet" means a low wall or railing built along the edge of a roof or a floor;

(64)

"Parking space" means an area enclosed or unenclosed, covered or open, of sufficient size to park vehicles, together with a driveway connecting the parking space with a street or any public area and, permitting ingress and egress of the vehicles;

(65)

"Pent house" means a covered space on the roof of building used for shelter during rains. It will have at least one side open;

(66)

"Plantation" means plantation of plants and trees;

(67)

"Plinth" means the portion of a structure between the surface of the surrounding ground and of the surface floor, immediately above the ground;

(68)

"Plinth Area" means the built up covered area measured at the floor level of the basement or of any floor;

(69)

"Porch" means a covered surface supported on pillar or otherwise for the purpose of pedestrian or vehicular approach to a building;

(70)

"Public utility Service" means drainage, sewerage, electricity, water supply, garbage removal, solid waste disposal, sanitation, fire services, roads and any other support or infrastructure and the like for which a building has to depend on public bodies, authorities or agencies;

(71)

"Registered architect" means a qualified architect registered by the Council of Architecture who under the Architect Act, 1972, who has paid the renewal fee of registration for the current year, and who has not been debarred by the Authority;

(72)

"Road" means any access namely: highways, streets, lane, pathway, alley, stair way, place or bridge, whether a through fare or not, over which the public have right of passage or access or have passed and had access uninterruptedly for a specified period, and includes all bunds, channels, ditches, storm water drains, culverts, side tracks, traffic islands, road side trees and hedges, retaining walls, fences barriers and railing within the road line;

(73)

"row housing" means a row of houses with only front, rear and interior open spaces;

(74)

"Rule" means the Orissa Development Authorities Rules, 1983;

(75)

"Schedule" means a schedule appended to these regulations;

(76)

"Section" means section of the Act;

(77)

"Semi-detached building" means a building detached on three sides (front, rear and side) with open spaces as specified under regulations 30 to 33;

(78)

"Setback line" means a line usually parallel to the plot boundaries and laid down in each case by the Authority beyond which nothing can be constructed towards the plot boundaries and shall not apply to slums taken up under an approved programme of the Government subject to the specific sanction of the State Government, and subject to the conditions that there will not be more than 25 plots in one cluster, and the area of each plot in the cluster shall not exceed 250 square feet;

(79)

"Stair cover" means a structure with a covering roof over a staircase and its landing, built to enclose only the stairs for the purpose of providing protection from weather and not used for human habitation;

(80)

"Storey" means the space between the surface of any floor and the surface of the floor next above it, or if there be no floor above it, then the space between any floor and the ceiling next above it, but shall not include a mezzanine floor;

(81)

"Supervisor" means a person having

(a)

Diploma in Architectural Assistantship or Intermediate in Architecture, or

(b)

Diploma in Civil Engineering or

(c)

Trade certificate in Civil draughtsmanship from I.T.I.

(82)

"Technical personnel/Group/Engineer" means a person or a group of persons having qualifications, experiences and competency as provided in Schedule-I.

(83)

"tenements" means room or rooms in the occupation of, or meant for the occupation of one tenement;

(84)

"to about" means to about on a road so that any portion of the building is on the road boundary;

(85)

"unsafe building" means the buildings which are structurally unsafe, or in-sanitary, or do not provide adequate means of egress, or which constitute fire hazard, or are otherwise dangerous to life or property, or which in relation to existing use constitute a hazard to safety/health/public welfare, by reason of inadequate maintenance, dilapidation or abandonment.

(86)

"water closet" means a privy with arrangement for flushing the pan with water but does not include a bath room;
(87)

"Zoning Regulations" means any Regulations or plans governing the land use in any development plan or forming part of a development plan in operation;
(88)

Words and expressions used in these Regulations, but not defined, shall have the same meaning as respectively assigned to them in the Orissa Development Authorities Act, 1982, the Orissa Development Authorities Rules, 1983 and National Building Code of India amended from time to time.

3.

Application.

- Subject to the provisions of the Act, these Regulations shall apply:

(a)

to the planning, design and construction of the building in case of erection of a building;

(b)

to all parts of the building whether removed or not, and in case of removal of whole or any part of a building;

(c)

to remaining part of the building after demolition and work involved in the demolition in case of demolition of whole or any part of a building;

(d)

to the whole building whether existing or new building (except only to that part of the building, which is consistent with these Regulations) in case of alteration of a building;

(e)

to all parts of the building affected by the change in case of change of occupancy of a building; and

(f)

to use of any land or building where sub-division of land is undertaken or use of any land or building is changed.

4.

Limitations.

- Except as otherwise provided in the Act, the rules and the development plan, nothing in these Regulations shall require the removal, alteration, abandonment, or prevention of the continuous use or occupancy of an existing approved building, unless in the opinion of the Authority, such building constitutes a hazard to the safety of the occupants of the building itself or to the adjacent property.

5.

Deemed permission.

(1)

The construction of any building, in respect of which permission has been issued before the coming into force of these Regulations, shall, so far as it is not inconsistent with the provisions of these Regulations regarding provision of public utility services, and construction in heritage zone, continue to be validly made and the said permission shall be deemed to have been issued under the corresponding provisions of these Regulations.

(2)

Where any building has been constructed without an approved plan or with deviation of an approved plan, the provisions of these Regulations shall be insisted upon.

6.

Application for Building Plan.

- Any person who intends to erect, re-erect or make alterations or additions in any building or demolish any building, shall apply to the Authority in Form-I. Basing on this form, the authority may prescribe separate formats for different category of buildings and group housing.

Such application shall be accompanied by the following documents.

(a)

Four copies of plans, duly signed by the persons who have prepared them, the builder and the applicant, showing,-

(i)

Site plan

(ii)

Layout plan with road(s);

(iii)

Plan of all floors;

(iv)

Four side elevations;

(v)

Sections;

(vi)

Area statement; and

(vii)

Plan for sewerage/drainage disposal.

(b)

Evidence, like record of rights (ROR) or a civil Court decree that the applicant has prima facie right title and possession over the land on which the building is proposed to be constructed. In case of the building proposed to be constructed on land classified as agricultural in the ROR permission from the Revenue Authority for conversion to non agricultural purposes as provided under Section 8A of Orissa Land Reforms Act, 1993.

(c)

In case the applicant is a trust, group of persons, partnership, or a company, a registered agreement between the holder of the right, title and interest and the applicant, valid under the Transfer of Properties Act, 1982 and Copies of the Agreement/Article of Association/Memorandum/By law.

(d)

Evidence in support of deposit of cost of public utility services.

(e)

No objection Certificate from the Orissa State Housing Board, for the additional constructions, in case the house is delivered by the said Board.

(f)

Additional charges payable by bank draft or account payee cheque (subject to realisation) proportionate to the floor area, and to be decided and notified by the Authority in advance.

(g)

A refundable fee for the likely cost of public nuisance payable to the urban local bodies under Section 345 of the Orissa Municipal Act, 1950, in case debris or construction materials are stacked in public places leading to public nuisance, to be decided by the Committee constituted under Regulation 7(3), proportionate to floor area.

Explanation - if no fees are decided under paragraphs (f) and (g), no fee will be payable.

7.

Public utility service.

(1)

Where in a particular area, a number of plans for erection of buildings are coming up, and the authorities in charge of public utility services cannot apportion the costs of such services from each building, the Vice-Chairman of the Authority may, in consultation with the competent authority in charge of that public utility service, make a total estimate for any public utility. The Vice-Chairman of the Authority may either take up such work or make arrangement for depositing the cost in respect of each such building with the authority in charge of the public utility service. This amount shall be kept in one or more separate joint accounts of Authority and the implementing agency of the public utility services, or in such manner as the Committee constituted under sub-clause [3] decides.

(2)

The pro-rata cost of any particular building shall be,-

Total infrastructure development Cost $\times$ Floor area of the building / Anticipated total floor area of the area in the next five years.

(3)

The pro-rata cost of, and the agencies to execute, public utility services shall be decided, from time to time, by a Committee consisting of the following members:

(4)(1)

Secretary, Housing and Urban Development Department, or his nominee

-

Chairman

(2)

Chief Engineer, Public Health

-

Member

(3)

Chief Engineer, Public Works Department (Roads)

-

Member

(4)

Executive Officers of Urban Local Bodies in the Development Area

-

Members

(5)

Managing Director CESCO

-

Member

(6)

Member Secretary, Orissa Water Supply and Sewerage Board

-

Member

(7)

Director, Town Planning

-

Member

(8)

Vice Chairman of the Authority

-

Member convenor

(5)

The Committee may fix separate costs for separate areas and localities. In areas, where public utilities are not likely to be made available within a reasonable time, the committee may decide not to charge any fees at all. The decision of the Committee as to what is reasonable time will be final.

8.

Plans.

(1)

All the plans shall be prepared and duly signed by a technical personnel (Viz-Architect, Engineer, Structural Engineer, Town Planner, Supervisor, Group, Agency) and Builder who shall indicate his name, address, registration or licence number on the body of the plan and in all other relevant documents. The plans shall also be signed by the concerned owner of the land.

(2)

The technical personnel and builder as specified in sub-clause (1) above shall have to be registered with the Authority. Their qualifications and competence shall be as per Schedule-1.

(3)

When it comes to the notice of the Planning Member, Engineering Member, any Member of the Authority, or any other person that a plan signed by technical personnel or builder referred to under Sub-clause (1), is in violation of the norms

of this regulation he shall bring this to the notice of the Authority.

(4)

The Vice Chairman of the Authority shall issue a notice asking for a show cause within fifteen days as to why such technical personnel or builder shall not be disqualified/black listed. After receipt of the show cause, if any, the Vice Chairman shall place the matter before the Authority for a decision on such disqualification/black listing. The decision of the Authority on disqualification/black listing shall be published under Regulation 12.

(5)

An appeal against an order under Sub-clause (4) above shall lie under Section 103 of the Act.

9.

Permission.

(1)

No permission shall be required for the following works relating to maintenance, repair, improvement or alteration of any building, provided such works do not otherwise violate any provision of these Regulations-

(a)

plastering and patch repairs, re-roofing, flooring and re-flOoring, internal partition, white washing;

(b)

opening and closing windows, ventilators and doors not opening towards others property, replacing fallen bricks, stones, pillars, beams, etc;

(c)

construction or reconstruction of sun-shades/parapets/boundary walls, provided such construction does not exceed the maximum permissible covered area.

(d)

reconstruction of portions of buildings damaged by storm, rains fire, earthquake or any other natural calamity to the same extent and specification as existed prior to the damage.

(2)

All clarifications with respect to deficiency in the plan, documents will be sought for from the applicant at a time as far practicable.

10.

Decision of Authority.

(1)

The Authority shall communicate its decision on the plan including refusing permission within two months from the date of receipt of the application by the Authority, the applicant shall draw the attention of the Vice-Chairman of the Authority with regard to his application, by registered post in Form-III.

(3)

If, within a further period of one month from the date of receipt of the application drawing such attention as mentioned in sub regulation (2) above, the Authority does not communicate its decision, either granting or refusing permission, such permission shall be deemed to have been granted to the applicant on the date of immediately following the date of expiry of three months period.

(4)

A residential building may be constructed by the owner of the land of an approved layout without prior approval of the plan by the Authority if the following conditions are satisfied:

(a)

the plot size is not more than 120 square metres, of the approved layout.

(b)

The coverage is not more than 60 percent.

(c)

The height is not more than 6 metres.

(d)

The plan has been approved by a Registered Town Planner, Architect/ Group/Engineer as defined under clause 2 above, and;

(e)

An application in plain paper is submitted to the Authority, by Registered with a copy of the plan, and the Record of Rights, 60 days prior to commencement of construction;

(f)

All other conditions of the Regulation;

Note - (a) If the planning Member does not raise any objection within sixty days, permission shall be deemed to have been granted u/s 15 of the act.

(b)

The owner shall have to submit completion certificate as required under Section 20 of the Act and as referred to in regulation 18 & 67.

(c)

The owner and the builder shall remain responsible for any violation of the norms prescribed under the Regulation. Nothing in this provision will enable the owner and the builder to violate any of the other provisions of the Regulation.

(d)

Detail guidelines in this regard shall be framed by the Authority from time to time.

11.

Speaking order.

- The decisions of the Authority under Regulation 10 shall state the facts and grounds clearly along with the reasons for taking such decision.

12.

Publication of the decision of the Authority.

(1)

On the 7th day of every month the Authority shall publish a public notice containing the cases of permission/objection/rejection relating to the previous month by affixing a copy there of on the notice board of the Authority.

(2)

A copy of public notice as referred to in Sub-Regulation (1) shall be placed by the Vice Chairman of the Authority in its website, bda.bbsr.com.

(3)

This will be in addition to the notice to the applicant.

13.

Maintenance of Register u/s 16 (12) of the Act.

- A register in Form-IV containing the necessary particulars including information as to the manner in which applications for permission have been dealt with by the Authority shall be maintained, which shall be verified by the Vice Chairman of the Authority every month by the 15th of the succeeding month.

14.

Notice to start work.

- The applicant (hereinafter referred to also "as the owner") under Regulation 6 shall give notice to the Authority of his intention to start work after receipt of permission under Regulation 10 in Form-V.

15.

Deviation during construction.

(1)

Any alteration which exceeds the approved floor area, FAR, covered area, height, or reduces the approved parking space and the public utility services which amounts to deviation, and shall not be permissible.

(2)

Minor alterations like shifting and enlarging of doors and windows, non-structural pillars and partition walls, which do not affect structural stability, or which do not conflict with these Regulation, may be undertaken by the owner and shall be reported to the Authority from time to time. Such alterations shall be clearly stated in the completion certificate. The decisions, if any, of the Authority, regarding the alterations so made shall be final.

(3)

Subject to the provisions of Sub-Regulation (2), any deviation from the approved plan of construction shall not be permitted.

16.

Construction not according to plan.

(1)

if the Authority finds at any stage that the construction is not being carried on according to the sanctioned plan or is in violation of any of the provisions of these Regulations,, it shall notify the owner and no further construction shall be allowed until necessary corrections in the plan are made and the corrected plan is approved.

(2)

If the owner fails to comply with the requirements at any stage of construction, the Authority may cancel the building permission issued and shall cause notice of such cancellation to be pasted upon the said construction. If the owner is not traceable at his addressed given in the notice, pasting of such notice shall be considered as sufficient notification of cancellation to the owner thereof. No further work shall be undertaken or permitted upon such construction until a valid building permission is issued thereafter.

(3)

The notification under Sub-Regulation (2) shall also be published in the public notice in the manner as referred to in Regulation 12.

17.

Information at the site of construction.

- The owner shall, during construction, affix the following in a conspicuous place on or near the construction site; in respect of which the permission was issued namely :

(a)

a copy of the building permission; and

(b)

a copy of the approved plans with all specifications.

18.

Completion of construction.

(1)

Every person erecting or re-erecting a building shall, within one month after completion of such building, give a notice in writing to the Authority, which shall be published in the public notice in the manner referred to in Regulation 12.

(2)

The Vice Chairman of the Authority may, if he so, desires, inspect the work within one month of receipt of the notice under Sub-regulation (1), through the Engineering Member or the Planning Member, or both, or their authorised representative.

19.

Certificate for occupancy.

(1)

The Planning Member with the approval of the Vice Chairman shall issue a certificate of fitness for occupancy, for part of a building during its construction or whole of the building after construction.

(2)

Such certificate shall be issued only after all utility services for the entire building are physically provided and the authorities in charge of public utility services are paid for the said services. The Vice Chairman shall ensure that such cost has been properly paid.

(3)

Where despite payment of fees for the public utilities, the same is not provided, the deposit will be refunded to the applicant with interest. The rate of interest will be decided by the Committee constituted under Regulation 7. Pending a decision of the Committee on the interest rate, the original deposit will be refunded. In such cases, occupancy certificate will be issued, with the approval of the Vice Chairman subject to the condition that alternative arrangements for public utilities are made.

(4)

An appeal against the decision of the Vice Chairman shall lie under Section 18/103 of the Act.

20.

Inspections.

- The Vice Chairman, and his authorised representatives shall be competent to inspect the building works at all reasonable hours during construction hours to satisfy themselves that such construction is consistent with the provisions of these Regulations and the approved plans.

21.

Hazardous Building.

(1)

if the Vice Chairman, after causing an inspection by himself, or his representative, is of the opinion that it is necessary to do so, may declare any building existing, completed, or under construction, hazardous.

(2)

Before such declaration, a show cause notice shall be issued giving 15 days' time to the last known owner(s) or occupant(s) of the building. A copy of the notice shall also be published through affixture at the site. Either of the notices shall be deemed to be adequate. The notice shall also be published under Regulation 12. The show-cause, if any, received, shall be considered before passing an order under sub-clause (1) above.

(3)

Where action lies under Section 91 of the Act, action shall be initiated forthwith.

(4)

After such declaration under Sub-Regulation (1), the Vice Chairman of the Authority shall inform the matter, to the Sub-Divisional Magistrate having jurisdiction under Section 133 or 144 of the Code of Criminal Procedure, to take appropriate action.

(5)

These facts shall be notified under Regulation 12.

22.

Art Commission.

(1)

Where the building plan accompanying the application seeking permission, require the clearance by the Art Commission, Orissa, constituted under Section 88, the Authority shall grant the permission only after the clearance is given by the said Commission. In all other cases. Architectural Control shall be regulated according to the provisions of these Regulations.

(2)

The Authority, on the recommendation of the Art Commission, may issue public notices, from time to time, prescribing the architectural norms in different zones, in the manner prescribed in Regulation 12.

23.

Construction near protected monuments.

(1)

No construction or re-construction of any building, within a radius of 100 meters, or such other higher distance from any archaeological site, as may be decided by the Archaeological Survey of India and Orissa State Archaeological from time to time, from the outer boundary of a declared protected monument shall be permitted.

(2)

No construction above 1st floor and above 7 (seven) metres shall be allowed beyond a radius of 100 metres and within a radius of 300 metres of such monuments.

(3)

The construction or reconstruction of any building under Sub-Regulation (2) shall not be above 7 (Seven) metres of total height.

(4)

If a building or premises, not covered under The Ancient Monument Preservation Act, 1904, or the Ancient Monuments and Archaeological Sites and Remains Act, 1958, in the opinion of the Vice Chairman, is of historical or architectural interest, and is in danger of being demolished or altered or likely to be affected in its character by a development, the Authority shall not grant any permission for construction over any land situated near the said building or premises. He shall refer the plan to the Art Commission, whose decision shall be final for the Authority.

(5)

These provisions shall apply mutatis mutandis in respect of archaeological sites notified by the Art Commission.

(6)

An appeal against the decision under Sub-clause (4) shall lie under Section 18 of the Act.

24.

Responsibility under the Regulations.

(1)

Approval of plans and acceptance of any statement or document pertaining to such plan shall not exempt the owner or person or persons under whose supervision the building is-constructed from their responsibilities imposed under these Regulations, or under any other law for the time being in force.

(2)

Approval of the plan would mean granting of permission to construct under these Regulations only and shall not mean among other things:

(i)

the title over the land or building;

(ii)

easement rights;

(iii)

variation in area from recorded area of a plot or a building;

(iv)

structural stability, and

(v)

workmanship and soundness of materials used in the construction of the buildings.

(3)

The approval or permission shall not bind or render the Authority liable in any way with regard to the matter specified in clause (i) to (v).

25.

Deposit of Cost of public utilities service.

- The cost of public utility services shall be deposited before obtaining permission.

Part-II General Building Requirements

26.

Restriction on permission.

- Without prejudice to any other stipulation in these Regulations, no permission to construct a building on a site shall be granted.

(i)

in areas of natural waterways or drains, as detailed in the Development Plan, and the drainage plan prepared by WAPCOS, as modified from time to time.

(ii)

if the orientation of such building is not in harmony with the surroundings, as may be decided by the Art Commissioner;

(iii)

if the use to which the site is proposed to be put does not conform to the use earmarked in the Development Plan;

(iv)

if the building is to be constructed over or under a municipal drain, sewerage line, electrical line, water main, any other government or public land, or public utility services;

(v)

if the foundation of the external wall along a street is located at a distance less than 0.5 metres from the edge of the street or road margin including the drain;

27.

Distance from Electric lines.

- No verandah, balcony or the like shall be allowed to be erected or re-erected or any additions or alterations shall be made to a building in a site within the distance specified below determined in accordance with the Indian Electricity Rules, 1956 between the building and any overhead electric supply line;

Minimum Distance From the Electric Line

Table-1

Vertical distance in meters.

Horizontal distance in meters.

Low and medium voltage lines and service lines

2.5

1.2

High voltage lines up to and including 33,000 Volt

3.7

2.0

Extra High voltage lines beyond 33,000 Volt

3.7

2.0

(Plus 0.3 meters for every additional 33,000 volt or part thereof)

(Plus 0.3 meters for every additional 33,000 volt or part thereof)

28.

Plantation and Roads.

(1)

In every building area, at least 10% of the land shall be utilised for plantation, but in case of multi-storeyed buildings, at least 20% of the land shall be used for plantation. The plantation shall be completed by the time, the construction of the building is completed.

(2)

Every building shall have a public road of at least 6 metres width.

(3)

In case of a private road which gives access to one or more buildings, the owner of the said private road shall by way of gift transfer the same to the Local Authority for its maintenance.

29.

Minimum Plot area for multi-storey building.

- The minimum area of a site for construction of a multi-storeyed building shall not be less than 1000 square metres. The height of a multi-storeyed building shall be maintained according to the area of the site given in the table below:

Minimum Plot Area Requirement for Multi-Storeyed Building

Table-2

Height of the building in metres

Minimum area in square metres

15 to 21

1000

21 to 27

2000

above 27

3000

30.

Residential building.

(1)

The Setbacks to be left in rear, left and right side around detached residential buildings up to two storeys shall be as per Table below.

Open Spaces (Set-Backs)

For Residential (Detached) Buildings (Upto Two Storeys)

Table-3

Sl. No.

Average depth or width of site in metres

Minimum Open Spaces (Setback) in metres

Rear Side

Left Side

Right Side

1.

Up to 10

1.0

1.0

1.0

2.

Above 10 and up to 15

2.0

1.5

1.5

3.

Above 15 and up to 25

2.0

1.5

2.0

4.

Above 25

2.0

2.0

3.0

(2)

For every additional storey above two storeys, a further set-back of not less than 0.5 meter on the sides and in the rear shall be provided.

(3)

The conditions of minimum setback and maximum coverage shall not be applicable for a slum housing, rehabilitation of service population or for other housing scheme for economically weaker sections approved by Government, Housing Board and Authority.

(4)

The maximum Floor Area Ratio, the maximum plot coverage, maximum height of residential building and front setback with respect to the width of the street (approach road) shall be as given in Table below.

Area And Height Limitations For Residential Buildings

Table-4

Area of Plot in Square meters

Front Set Back in meters

Maximum Coverage

Maximum F.A.R.

Minimum Road width in meters.

100 to 200

2

60%

1.5

6

201 to 300

2

60%

1.5

9

301 to 400

3

55%

1.75

12

401 to 500

3

55%

1.75

12

501 to 750

4.5

50%

2.00

12

751 to 1000

4.5

50%

2.00

12

Above 1000

6.00

50%

2.00

12

(5)

In addition to what has been stated in the table above, wherever the width of the road is less than 6[six] metres, the FAR shall be limited to 1.0 and the coverage shall be limited to 50% of the plot, irrespective of the size of the plot;

(6)

Group housing - (a) The maximum Floor Area Ratio for Group Housing will be 2.00.

(b)

The maximum permissible coverage in respect of group housing shall be 50%.

(c)

In group housing with apartment/joint ownership of land the owner/ developer shall provide floor space for house owners society Office/assembly at the rate of 1 Sq. metre per household/flat provided that the minimum area shall not be less than 12 Sq. metre.

(d)

The area for community facility shall be provided as per Table-5 below :

Percentage Of Area Required For Community Facility

Table-5

Ultimate Population

Percentage of total area required for community facility

1000

5

3000

8

10000

10

Note - Provided that where the ultimate population is less than 1000, the above percentage of space shall not be insisted upon. The ultimate population will be arrived at by considering upper storey development within permissible

F.A.R. and the total number of dwelling units accommodated in the Scheme. The household size occupying a dwelling unit is to be taken as five.

(e)

One staircase for every 5 dwelling units or fraction thereof in a floor shall be provided.

(7)

Outhouse - An outhouse with zero level rear and one side set back may be permitted on a plot having an area not less than 150 sq. metres, provided that :

(a)

the coverage of the outhouse shall not exceed 32.5 sq. metre and the height shall not exceed 3.3 metre;

(b)

the coverage of the outhouse and that of the main building together shall not exceed the permissible coverage for the concerned plot;

(c)

the outhouse shall not cover more than one third of the width and more than one fourth of depths of the plot and shall not abut any public road';

(d)

a minimum of 1.5 metre strip of land shall be kept open to the sky between the main building and the outhouse;

(e)

no opening either in the form of windows or doors or ventilators shall be provided to the adjoining properties;

(f)

outhouses with sloped roof would only be permitted. In no case permission for outhouses would be granted with reinforced concrete cement flat roof.

(8)

Requirements for Basti Area - (i) In a Basti area, permission to erect a building may be given on the basis of the available width of means of access, provided that where the width of means of access is 4.5 metre or less, the coverage shall be limited to 50% of the plot area and the maximum height of the building limited to two storeys and the F.A.R. limited to 1.0.

(ii)

For plots with narrow width (7.5 metres) zero setback may be allowed on one side with a passage of one metre on the other side.

(iii)

The rear setback and front setback shall not be less than 3.0 metres and 1.5 metres respectively.

(iv)

In each house on a Basti plot having one side setback, an internal Court-yard of not less than 10 sq. metres in area and not less than 2.5 metres in width shall be provided in such a way that at least one wall of each living room abuts such court-yard or a verandah opening to such courtyard.

(9)

Residential density - Density of population in residential area should be guided as per the infrastructure available. The spot density for particular plot(s) proposed for multi-family dwellings shall in no case exceed 400 persons per acre.

(10)

Row housing and semi- detached houses - (i) Owners of adjacent similar dimension plot abutting a road may be permitted to construct row or semi-detached buildings.

(ii)

The orientation of the row or semi-detached building shall preferably be such that the prevailing south-west summer breeze can be availed by each dwelling unit.

(iii)

For semi-detached buildings over two adjacent plots, the coverage, setbacks, the height and the FAR shall be regulated by treating both the plots as one and in accordance with the requirements contained in Table 3 and Table 4 given in regulation 30 of these regulations.

(iv)

In case of row housing the length of a row shall not exceed 30 meters along the road on which such houses abut. In

case the dwelling units in a row are scattered the maximum length of the road shall be 100 metres.

(v)

For row houses the ground coverage shall not be allowed to exceed 60% and the FAR more than 1.50.

(vi)

The minimum size of the plot on which a unit of a row housing may be allowed shall be 30 square metres.

31.

Commercial building.

(1)

Except as otherwise expressly provided in these Regulations, the open spaces (setbacks) to be left around, the maximum number of floors, the maximum percentage of coverage, the Floor Area Ratio and maximum height in respect of commercial buildings shall be as given in table below:

Height, Coverage, Far For Commercial Buildings

Table-6

Area of the plot in Sq. mtrs.

Maximum % of Coverage

Floor area ratio

Minimum Road width in mtrs

Minimum Front open space in mtrs.

Upto 100

75

1.5

9

1.5

101 to 200

70

1.5

9

1.5

201 to 300

70

1.75

12

1.5

301 to 400

65

1.75

12

2.0

401 to 500

55

2.0

18

2.0

501 to 1000

50

2.0

18

3.0

1001 to 2001

50

2.0

24
4.0
2001 & above
50
2.0
30
5.0 and above

(2)

The left side, the right side and the rear open spaces (setbacks) in respect of commercial plots specified in Table-under clause 31 (1) shall not be less than that indicated in Table below:

Side and Rear Open Spaces (Setbacks) for Commercial Buildings

Table-7

Area of Plot in square meters

Minimum Right side open space in meters

Minimum Left side open space in meters

Minimum rear side open space in meters

Upto 100

Nil

Nil

Nil

101 to 200

1.0

1.0

1.5

201 to 500

2.0

2.0

2.5

501 to 1000

2.0

2.0

3.0

Above 1000

3.0

3.0

3.5

(3)

For every additional floor above two floors, the side and rear setbacks shall be increased by at least 0.5 metre.

(4)

Shop-cum-Residential Building - Where plots are allotted in a road for shop-cum-residential purpose the Authority may allow construction of shop-cum-residential building without any side set backs up to a depth of 10 metres from the front exterior wall. Provided that no part of the building up to said depth is used for residential purpose on the ground floor. No building exceeding 11 metres in height shall be allowed to be constructed as a shop-cum-residential plot, unless so permitted under the zonal Development Plan, provided that the shop-cum-residence shall have 2/3rd of the total floor area used for shops. The FAR and other parameters shall conform to that specified for commercial buildings under clause (1) to (3) above.

32.

FAR restriction for lesser road width.

- Where sites for residential and commercial buildings do not face or abut a road of the required width as specified in Regulation 30 (4) and 31(1), the front setback and the coverage of the building shall be regulated according to the size of the plot, but height and Floor Area Ratio shall be regulated according to width of the road along which the concerned

site is located. The coverage shall be reduced to provide for roads of lower width.

33.

Institutional building.

(1)

For buildings of less than 15 metres height to be used for institutional, religious, educational and assembly purpose, the open space, coverage and F.A.R. requirements shall be as per the provisions of Table below :

Open Space Requirement For Institutional Buildings (Including Religious Educational And Assembly) Upto 15 Metres Of Height

Table-8

Area of the plot in square metres

Minimum Open space requirement

FAR

Maximum Coverage

Front

Side

Rear

Up to 500

6 M

3 M

3 M

1.50

40%

500-1000

9 M

3 M

3 M

1.50

35%

Above 1000

12 M

3 M

3 M

1.75

30%

(2)

All Institutional, Assembly, Commercial and Industrial Buildings shall contain at least two doors for entry and exit and shall provide adequate toilet facility separately for men, women and handicapped persons in each floor which shall be linked to main sewerage/drainage systems of the town wherever possible and shall be maintained clearly and properly by the builders/ tenants/occupants of the building, as the case may be.

34.

Cinema and Theatre building.

(1)

The relevant provisions of the Orissa Cinemas (Regulation) Rules, 1954 shall apply for planning, designing and construction of Cinema and Theatre buildings and plan and design shall be made as per Table below-

Open Space Requirement For Cinema/theatre Buildings

Table-9

Minimum Area of plot in square metres

Minimum Open Space requirement [metres]

FAR

Maximum Coverage

Front

Rear
Sides
2000

9

6

5

1.0

35%

3000

12

6

5

1.5

35%

(2)

No permission for construction of a building to be used as a cinema hall, theatre or auditoria for cultural show shall be granted unless the construction of such buildings conform to the provisions of the Orissa Cinema (Regulations) Act, 1954 and the Orissa Cinematography Rules, 1939 or any other law in force in the State.

(3)

No permission to construct a cinema hall on a site shall be given unless such site has been approved by the Authority for construction of a cinema hall thereon.

(4)

The open spaces (set-backs) to be left around a cinema building number of floors, coverage, FAR in respect of cinema hall, theatres or auditoria for cultural show shall be as per the Table given under clause (1) above,

(5)

Buildings referred to in sub-clause (3) shall be permitted only on plots which abuts a street with a minimum right of way of 30 metres and where the width of the right of way is less than 30 metres if permissible under a zonal plan or a development scheme or a town planning scheme,

(6)

Excepting provision for restaurant and incidental facilities no other use shall be permitted in a cinema building.

(7)

All cinema, theatre or auditoria buildings shall conform to IS: 4898-1968 and acoustics design of such buildings shall adhere to the requirements of IS: 2526-1 963.

(8)

Exists and fire safety requirements shall be in accordance with Part IV (Fire Protection) of National Building Code of India, 1979;

35.

Industrial buildings.

(1)

The open space, F.A.R. and coverage for industrial buildings shall be as in Table below :

Open Space (Setbacks) And The F.A.R. For Industrial Buildings

Table-10

Plot size in sq.m

Front setback in meters

Rear setback in meters

Site setback in meters

FAR

Maximum coverage

Up to 500

4.0

3.0

3.0
 0.6
 50%
 + 500 to 1000
 6.0
 4.5
 4.5
 0.6
 50%
 + 1000 to 5000
 9.0
 5.0
 5.0
 0.6
 45%
 + 5000 to 30000
 9.0
 9.0
 6.0
 0.5
 40%
 Above 30,000
 15.0
 15.0
 1.0
 0.4
 40%
 (2)

Vacant space shall be maintained with the following distances for all time for storage shed used for the storage of liquefied petroleum gas' cylinder between any building, public space, public road or any adjoining property which may be built upon and the said storage shed.

Minimum Distances Required For Storage Shed of Liquefied Petroleum Gas Cylinders

Table-11

Quantity of Compressed Gas in cylinders (Kg.)

Minimum distance to be kept clear (meters)

0-100
 1
 101-1000
 3
 1001-4000
 5
 4001-8000
 7
 8001-12000
 9
 12001-30,000
 12
 Over 30,300
 15

(3)

Notwithstanding anything contained in the conditions specified above, cylinders containing liquefied petroleum gas

exceeding 100 Kilograms but not exceeding 300 Kilograms may be kept in a storage shed forming part of, or attached to building, if it is separated there from by a substantial partition and the only means of access to it is from outside air. Such a storage shed shall not be situated under any stair-case or near other entrances to or exits from the rest of the building or other buildings.

(4)

A shed used for storage of liquified petroleum gas cylinders shall be surrounded by a suitable fence to prevent unauthorised persons from having access to the shed.

36.

Interior open space.

(1)

At least one side of all the rooms intended for human habitation, if such room does not abut on the front or the rear or the side setbacks, shall abut on an interior open space whose minimum dimension shall be 3 metres X 3 metres in cases of buildings up to a height of 12 metres. In cases where the height of the building is more than 12 metres, the width of the interior open space shall be increased at the rate of one metre for every additional 3 (three) meters height. This provision shall be applicable to all categories of buildings, namely, residential, group housing, commercial, public, semi-public and Industrial.

(2)

In case any interior open space is intended to be used for the benefit of more than one building belonging to the same owner, the width of such open space shall be the one specified for the tallest building abutting on such open space provided that such open space shall not be less than three metres.

(3)

In case of group housing, if the interior open space is used for providing access to the building blocks the same shall not be less than six metres in width.

37.

Height of a building.

(1)

The height of the building shall be governed by the limitations of Floor Area Ratio, open space (setbacks), and the width of the street facing the plot described as detailed below :

(a)

The maximum height of a building shall in no case exceed $1.5 \times$ the width of the road to which the plot abuts + the front setback.

(b)

If a building abuts on two or more streets of different widths, the building shall be deemed to face upon the street that has the greater width and the height of the building shall be regulated by the width of the street.

(2)

Notwithstanding any thing contained in Sub-Regulation (1) & (2) the height restrictions with respect to approach Funnels and Transitional area of Airport as detailed in Table-12 & 13 shall be adhered to.

Height Restrictions With Respect To Approach Funnels

Table-12

Distance from nearest runway end (in meters)

Maximum permissible height above the elevation
of the nearest runway end (in meters)

Upto 360

0

361 to 510

6

511 to 660

9

661 to 810

12

811 to 960

15
961 to 1110
18
1111 to 1260
21
1261 to 1410
24
1411 to 1560
27
More than 1560
30

Height Restriction With Respect To Transitional Area

Table-13

Distance of the inner boundary of the
transitional area (outer boundary of the Air Port) [Meters]
Maximum permissible height above the elevation
of the Air Port reference point(meters)

Up to 21
0
22 to 42
3
43 to 63
6
64 to 84
9
85 to 105
12
106 to 126
15
127 to 147
18
148 to 168
21
169 to 189
24
190 to 210
27
More than 210 M
30
(3)

Notwithstanding anything contained in the Tables under Sub-Regulation (1), no Radio Ariel, T.V. Antenna or such similar type of installations exceeding 52 metres in height shall be erected without prior permission of the concerned Civil Aviation Authority.

(4)

No building structure or installation exceeding the height indicated in the said Tables shall be permitted unless the applicant produces a 'No-Objection Certificate' from the Airport Authority.

38.

Height exemption of a building.

- Roof tanks and their supports, not exceeding 1 (one) metre in height, ventilation, air-conditioning, lift-room and similar service equipment, stair cover, not exceeding 3 (three) metres in height, chimney other than barsaties, parapet wall and architectural features including terrace, gardening, plants not exceeding 1.5 metres in height, shall not be included in the

height of the building, provided the aggregate area of such structures including barsati shall not exceed one third of the area of the building upon which they are erected.

39.

Exemption in Open space.

(1)

Every open space provided either interior or exterior in respect of any building shall be kept free from any erection thereon and shall be open to the sky and no cornice, roof, or weather shade of more than 0.6 metre in width shall overhang or project over such open space.

(2)

A portico of up to 2.4 metres width and 4.5 metres length with a height of 2.1 metres from the plinth level may be permitted within the side setback. A garage is permissible at the rear end of side open space provided no openings are located on the side and rear boundary. Access to the top of the portico/garage should not affect the privacy of the neighbouring plot.

(3)

The portico provided as above should not rest on the boundary wall and should be open to provide through excess to the rear. In case the Portico is not a cantilevered one and supported by pillars the area shall be included in the coverage.

40.

Building Line.

- The following building lines shall be maintained for construction of building abutting arterial roads

Distance Of Building Lines From Arterial Roads

Table-14

Category of arterial roads

Minimum distance of the building line from R/W of the road.

92.0 metres (300 feet)

7.5 metres (25 feet)

65.5 metres (200 feet)

6.0 metres (20 feet)

46 metres (150 feet)

4.5 metres (15 feet)

30.0 metres (100 feet)

4.5 metres (15 feet)

41.

Off Street Parking Space.

(1)

Each off-street parking space for one four wheeled vehicle shall not be less than 15 square metres. For scooters and cycles it shall not be less than 1.5 and 1.0 square meter respectively.

(2)

One parking unit shall have parking space of at least 40 square metre.

(3)

For buildings of different Category of occupancies, off-street parking space for vehicles shall be, as specified in the table below.

Off-Street Parking Space for Different Category of Occupancies

Table-15

Sl.No.

Type of use

One parking unit shall be provided for every

(1)

(2)

(3)

1.
Theatres, Auditoriums, Cinemas
40 seats or fraction thereof
2.
Retail, General Business and Commercial
140 square metres of floor space or proportion thereof
3.
Office buildings
140 square metres of office floor space or proportion thereof
4.
Restaurant
40 seats or proportion thereof (Nil for first 20 seat)
5.
Hotels
6 Guest-rooms or proportion thereof
6.
Industrial buildings
140 square metres of office floor space or proportion thereof
7.
Whole-sale and Warehousing building
500 square metres and thereafter for every 200 square metres
8.
Multi-family dwelling
4 dwelling units
9.
Educational
140 square metres of floor space or proportion thereof
10.
Medical
140 square metres of floor space or proportion thereof

(4)
Notwithstanding anything contained in sub-regulation (2) of this regulation, for shop plots up to 100 square metres, provision of parking space shall not be less than 20 square metres.

(5)
Off-street parking spaces shall be provided with adequate vehicular access to a street and the area of drives, aisles and such other provisions required for adequate manoeuvring of vehicles and shall be in addition to the parking space stipulated in these Regulations.

(6)
If the total off-street parking space required under these Regulations is provided by a group of property owners at a place for their mutual benefit, such parking spaces may be constructed as meeting the off-street parking requirement, however, subject to the approval of the Authority. In such cases, the cost of public utility services shall be deposited with the appropriate Authority by the said property owners.

(7)
In addition to the off-street parking spaces required to be provided for building to be used for commercial, industrial or storage purposes, additional parking space at the rate of one such space for each 1000 square metres of floor area or fraction thereof exceeding the first 200 square metres of floor area, shall be provided for loading and unloading activities.

(8)
Garage with locking facilities shall be included in the calculation of floor space for determining the requirement of parking space, unless this is provided in the basement of a building or under a building constructed on stilts with no external walls. The parking spaces to be provided shall be in addition to the open spaces (setback) required around a building

under these Regulations. However, one row of car parking may be provided in the front open space and one row of scooter or motor cycle parking may be provided in any one of the side open space without reducing the clear vehicular access way to less than 6.0 metres.

(9)

The basement and ground [stilt] floor of multi-storied buildings shall be used exclusively for parking, and related activities like security of parking space and maintenance.

(10)

Violation of any of the conditions relating to parking space under this regulation shall not be compounded or relaxed by the Authority

42.

Drainage and Sewerage.

(1)

It shall be the responsibility of the builder or the owner of the building to ensure that the plinth is high enough to prevent drainage/sewerage water entering into the lowest floor at the highest recorded level of rainfall.

(2)

No permission shall be granted for construction over the eleven drains identified by WAPCOS and incorporated in Comprehensive Development Plan.

(3)

No permission shall be granted for construction over an existing tank after refilling, or a tank refilled within a period of one year prior to the date of notification of those regulations.

(4)

Where any construction is taken up over any drain, or waterway, the Vice Chairman can, apart from taking action for removal of the constructions, take action for recovery of the cost of restoration of adequate drainage. The rates for this will be decided by the Committee constituted under sub-regulation (3) of Regulation 7.

43.

Basement.

(1)

Basement shall not be permitted in low lying area and areas without adequate drainage facilities to ensure drainage from the basement.

(2)

Construction of a basement may be allowed by the Authority in accordance with the provisions contained in the development plan applicable to the concerned area.

(3)

Basement shall not be used for residence, institution and industries, However, it may be used for parking and other uses as specified below

(i)

Storage of house-hold or other non-flammable materials;

(ii)

Dark room.

(iii)

Strong room, bank cellers etc;

(iv)

Installation of air-conditioning equipments and other machines used for service and utilities of building;

(v)

Parking places and garages;

(vi)

Stock room for library;

(vii)

Offices or commercial purposes provided it is air-conditioned;

(4)

In case, the basement is used for purposes other than parking, the total area of such floor shall be included for

calculating floor area ratio subject to condition that such construction does not result in interference in the public utility system.

(5)

The basement shall be permitted to be constructed within the prescribed set back and maximum coverage applicable to the building.

(6)

The basement shall fulfil the following requirements :-

(i)

Every basement shall be in every part at least 2.4 metres in height from the floor to the underside of the roof slab or ceiling.

(ii)

Adequate ventilation shall be provided for the basement. The standard of ventilation shall be the same as required by the particular occupancy according to regulations. Any deficiency may be met by providing adequate mechanical ventilation in the form of blowers, exhaust fans (one exhaust fan for 50 sq. metres of basement area), air conditioning system etc;

(iii)

The minimum height of the ceiling of any basement shall be 0.9 metre and maximum 1.2 metres above the average surrounding ground level;

(iv)

Adequate arrangement shall be made so that surface drainage "does not enter the basement.

(v)

The walls and floors of the basement shall be water-tight and be so designed that the effect of the surrounding soil and moisture, if any are taken into account in design and adequate damp proofing treatment is given;

(vi)

The access to the basement shall be separated from the main and alternate staircase providing access and exit from higher floors. Where the stair-case serving as a fire separation from the basement floor and higher floors.

(vii)

In the case of basement of office and commercial occupancies, sufficient number exit ways and access ways shall be provided with a travel distance not more than 15 metres;

(viii)

The basement shall not be partitioned. In case the partitions in the basements are allowed by the Authority, no compartment shall be less than 45 square metres in area and each compartment shall have ventilation standards as laid down in sub-clause (ii) separately and independently. The partitions shall, however, conform to the norms laid down by the Chief Fire Officer, Orissa.

(ix)

Kitchen, bath-room and toilet shall not be permitted in the basement;

(x)

The ramp providing access to basement to be used for parking shall have a gradient not steeper than 1:10 and this shall not disturb the minimum set-back area of the building.

44.

Provision of Lift.

- Lift shall be provided for buildings above 10 metres height in case of apartments, Commercial, institution and office buildings.

45.

Mezzanine.

- Mezzanine floor may be permitted above any floor in all types of buildings up to an extent of one-third of the actual covered area of that floor. All Mezzanine floors shall be counted toward FAR calculation, except the mezzanine floor over the ground floor.

46.

Heritage Zone.

(1)

(a)

In 18 revenue villages as referred to in Regulation-50 which includes the Heritage Zone identified in the Comprehensive Development Plan area of Bhubaneswar, all multi-storeyed buildings are prohibited and maximum building height is limited to 10.0 metres with a maximum Floor Area Ratio of 1.5.

(b)

The Authority may notify the Heritage Zone in consultation with the Archaeological Survey of India, State Department of Archaeology, Bhubaneswar Municipal Corporation and in Art Commission.

(2)

In areas covered under the Heritage Zone the architectural features, facades, materials of walls, and of buildings shall be subject to the provision of Regulation 22.

(3)

In case of sandstone structure with Kalinga style roofs, all fees other than the charges for public utility services shall be charged at half the rate. The Art Commission alone will be competent to decide what constitutes Kalinga style architecture and to decide whether a building conforms to such architecture

47.

Barrier free access for the disabled.

- Adequate provision for facilitating easy access of disabled persons shall be made in all public buildings in accordance with the provisions of National Building Code of India including the minimum facility to reach the staircase/lift without any barrier.

48.

Precedent.

- The Authority may take into consideration the information of an applicant for a building relating to cases of relaxations granted by the Authority in the same area, zone or in similar cases while deciding the cases under Regulation 10.

49.

Quality of work.

- The Vice Chairman of the Authority shall ensure, through inspections, that the quality of work is proper and the availability of public utilities is adequate, during and after construction.

Part-III Multi-Storeyed Buildings : Additional Requirements

50.

Restriction on construction of Multi-storeyed building.

(1)

Construction of multi-storeyed building shall not be permitted in the following villages of the Bhubaneswar Development Area, namely :

1

Dhuli

10

Jagamara (Unit-20)

2

Kausalyaganga

11

Basuaghai

3

Mahabhoisan

12

Kapilaprasad (Unit-23)

4

Sisupalgarh

13

Kapileswar (Unit-25)

5

Lingipur

14

Bhubaneswar (Unit-27)

6

Aiginia

15

Gautamnagar (Unit-28)

7

Dumuduma

16

BJB Nagar (Unit-29)

8

Baramunda (Unit-19)

17

Badagada (Unit-35)

9

Nuagaon

18

Rajarani (Unit-38)

(2)

The Authority may restrict construction of multistoreyed buildings in any other area on the basis of objective assessment of the available infrastructure facility and planning needs after obtaining due approval of the Government.

(3)

Before commencement of these Regulations, where permission has been granted conditionally, such cases shall be dealt with under these Regulations as far as possible, without any major change, or without removal of construction. However, where violation of Heritage Zone conditions has occurred, this relation will not apply.

51.

No multi-storeyed building shall be allowed to be constructed:

(a)

With approach road less than 12 metres width;

(b)

Within 100 (One hundred) metres from the centre of a National Highway on either side;

(c)

Within 300 (three hundred) metres of the boundary line of any old temple or historical monuments or site of archaeological importance recognised by the Archaeological Survey of India, State protected monuments outside the Heritage Zone of the Comprehensive Development Plan;

(d)

Within 100 (hundred) metres from boundary of the Railway track of the Indian Railway; and;

(e)

Within the heritage zone;

(f)

Within one kilometre from the reference point of an Airport without clearance from the Airport Authority.

(g)

In low-lying area as notified by the Authority.

52.

Application for construction of Multistoreyed building.

(1)

Every application for approval of the site and building plan and permission to construct or reconstruct or alter or add to, a multi-storeyed building shall, in addition to the prescribed scrutiny fee under the rules and other fees as prescribed by the Authority from time to time and the applicable particulars required, be accompanied with the following further particulars, namely

(i)

A key plan showing

(a)

the means of access from the street or streets to all the buildings existing and proposed at the site, to the parking space and facilities provided at the site for scavengers and fire protection;

(b)

the spaces to be left around the building for access, parking, circulation of air, light and other amenity;

(c)

the disposal system of storm and domestic refuse water; and

(d)

a rain water harvesting structure;

(ii)

Building plans showing

(a)

plan of all floors and covered area indicating clearly size and spacing of all framing members and sizes and arrangement of rooms and the position of stair-case, ramps, lift, wells and circulation spaces;

(b)

longitudinal cross section of the building including size of footings, basement and super structure framing members and details of building and room heights and of staircase;

(c)

plans and sectional details of water supply, drainage and sewerage system of the building;

(d)

internal electrical design;

(e)

the general lay-out of the columns and load bearing walls; and;

(f)

a landscape plan showing the area to be developed as lawn, garden, plantation etc.

(iii)

No Objection Certificate

(a)

In case of buildings having more than four floors or 15 [fifteen] metres and above height, from the Chief Fire Officer having jurisdiction to the effect that the applicant has agreed to provide the fire fighting measures for the building as prescribed in the National- Building Code and to the effect that the plan provides access for easy movement of fire service vehicles in case of a fire hazard in future; and

(b)

In all multi-storied buildings, the Chief Officer of the Archaeological Survey of India in case of any portion of the plot or site of the building or its boundary exist within 300 (three hundred) metres of the boundary line of any old temple of historical monuments or site of archaeological importance, or heritage site.

(iv)

Statement and calculation sheets with regard to the plot area, floor wise details of spaces under various categories like apartment or office spaces, lobby circulation, staircase, lift, mezzanine space, balconies and details of such area which are to be exempted from calculation of floor area ratio, and;

(v)

Details of structural plan and structural design including soil test certificate from a structural engineer. Provided further that while preparing the structural plan/design following aspects should be taken into account :

(a)

The loads and forces including seismic forces and wind loads which are to be taken into account for structural design of building shall be in accordance with the Section-1 (Loads) of Part-VI (structural design) of the National Building Code of India, 1983.

(b)

The structural design of foundations and elements in Substructure and super structure of wood, masonry, reinforced and pre-stressed concrete and steel shall be in accordance with Section-2 (foundation), Section-3 (wood), Section-4

(masonry), Section-5(concrete) and Section-6 (steel) of Part-VI (structural design) of the National Building Code of India, 1983.

(2)

All plans, drawings, statements, design details shall bear the signature of the applicant and shall be duly countersigned by a registered Architect. All documents and plans related to structural designs, shall bear the full name and full signature of a Structural Engineer. Plans and documents related to sanitary arrangements shall bear the full name and full signature of a Public Health Engineer.

Note - (a) The registered Architect who has prepared the plan shall put the registration number and seal on all plans and documents signed by him and shall also furnish a certificate to the effect that he shall supervise the construction of the building and shall be responsible for any deviation from the approved plan.

(b)

The Structural Engineer, who has prepared the structural design, shall put his seal, and address on all the documents signed by him and shall also furnish a certificate to the effect that he shall supervise the structural part of the construction and shall be responsible for any structural failure except caused by unprecedented natural calamities in Form-VII.

(c)

All aspects related to structural design, building surface, plumbing, electrical installation, sanitary arrangements, fire protection shall adhere to the specification, standards and code of practice recommended in the National Building Code of India, 1983 and any breach thereof shall be deemed to be a breach of the requirements under these Regulations.

53.

Permission for construction of multi-storeyed building.

- Permission for construction of a multi-storeyed building shall be given in two stages, namely :-

(i)

initially for construction up to 75% of the proposed building height; and

(ii)

at the second stage, after proper compliance of the provisions contained in Regulation-25 and sub-Regulation (1) of Regulation-28.

54.

Commencement of work.

(1)

Every applicant or builder or owner shall submit a notice regarding his intention to commence the foundation work of the proposed multi-storeyed building to the Authority through the authorised technical person. The said notice shall be accompanied by the approved plan and should be in Form-V.

(2)

Soon after the receipt of the notice referred to in sub-clause (1) above, the Authority shall send a team of officer as decided by the Authority to the proposed building site and the layout for foundation of the proposed multi-storeyed building shall be made in presence of those officers. The team shall also submit a report to the Authority to the effect that the layout has been made as per the approved plan.

(3)

During or soon after the construction of the foundation work of the multi-storeyed building, the Vice-Chairman of the Authority or his authorised team of Officers shall inspect the construction to ensure that the set-backs, coverage, basement if any; and foundation standards are according to the approved plan.

(4)

The applicant/builder shall submit periodic progress report after casting of each floor in Form-VIII.

55.

Liability of defective construction.

(1)

For defective constructions, the Vice Chairman shall sue the owners, builders, architects, and the engineers for both civil and criminal liabilities, besides taking action under these Regulations.

(2)

Without prejudice to the provisions of the Act, the actions to be taken by the Vice Chairman shall include stop

construction notices, cancellation of permission, and removal of unauthorised constructions. Such actions shall be notified under Regulation 12.

56.

Maintenance.

(1)

The main entrance to the premises shall not be less than 5 (five) metres in width in order to allow easy access to fire engine. The gate shall fold back against the compound wall of the premises, thus leaving the exterior access way, within the plot, free for the movement of fire service vehicles. If archway is provided over the main entrances, the height of the archway shall not be less than 5(five) metres.

(2)

For multi-storeyed group housing scheme on one plot, the access way within the premises shall not be less than 7.5 (seven and half) metres in width and between individual building blocks, there shall be an open unbuilt space of 6 (six) metres.

(3)

The space set apart for providing access within the premises shall, in no case, be included in the calculation of requirements pertaining to parking spaces and other amenities required to be provided for the building.

(4)

Every access way shall be properly drained and lighted to the satisfaction of the Authority. Manhole covers or any other fittings laid within the right of way of the access way shall be flushed with the finished surface level of it so as not to obstruct safe movement of men and vehicles.

(5)

Reconstruction or addition or alteration to any multi-storeyed building shall not be taken in a manner which shall reduce the width of the access way to a level below the minimum prescribed limit under these Regulations.

57.

Exit.

(1)

Every multi-storeyed building meant for human occupation or assembly, shall be provided with exit sufficient to permit safe escape of the occupants in case of fire or other emergencies.

(2)

An exit may be a door-way, corridor, passage way to an internal or external staircase or to a verandah or roof or terrace having access to a street.

(3)

Exits shall be so arranged as to provide continuous means of access to the exterior of a building or exterior open space leading to a street without passing through any occupied unit.

(4)

Exits shall be selected that the travel distance on the floor shall not exceed twenty metres in case of residential, educational, institutional and hazardous occupancies and thirty metres in the case of assembly, business, mercantile, industrial and storage occupancies. Wherever more than one exit is required for a floor of a building, exit shall be placed at a reasonable distance from each other as possible. All the exits shall be accessible from the entire floor area at all floor level.

(5)

There shall be at least two exits serving every floor and at least one of them shall lead to a staircase.

(6)

The width of every exit shall not be less than one metre and shall be provided as per the following table.

Sl. No.

Type of occupancy

Number of occupants per unit exit

Stair Case

Terrace

1

2

3

4

1.

Residential

25

75

2.

Mixed and other uses

50

75

Explanation-

(a)

Lifts and escalators shall not be considered as an exit.

(b)

'Travel distance' means the distance from any point in the floor area to any exit measured along the path or egress except that when the floor areas are sub-divided into rooms, used singly or of rooms and served by suite corridors and passage, the travel distance may be measured from the corridor entrance of such rooms or suites to the nearest staircase or verandah having access to the street.

58.

Parking space.

(1)

The provisions of Regulation 41 shall apply for providing parking spaces within the premises of a multi-storeyed building.

59.

Mandatory provision.

(1)

Every multi-storeyed building shall provide one or more rain water harvesting structures. The total dimension of recharging/ percolating pits/trenches should be at least at the rate of 6 [six] cubic metres dimension for every 100 [one hundred] square metres of roof area. Provided further that such rain water harvesting structure may also be provided in case of Residential Apartment, Institutional Buildings and Administrative Buildings.

(2)

Every multi-storeyed building shall provide red lights on the roof facing the sky of a minimum wattage of 500. This can be of one or more units; but the minimum wattage of one unit shall be 100 watts.

60.

Lifts.

- Lifts shall be provided in all multi-storeyed buildings irrespective of the use. The lifts provided shall not be considered as means of escape in case of emergencies. An extra staircase shall be provided as a means of escape during emergency.

61.

Floor area ratio and setback.

- In case of multi-storied buildings, the maximum Floor Area Ratio shall be 2.00, and the maximum ground coverage shall be 50%. Out of the balance area, at least 20% shall be covered by plantation.

(a)

The minimum side and rear set-back for the multi-storeyed building shall be 1 /3rd (One third) of the height of the building.

(b)

The minimum front setback for the multi-storeyed building shall be 1 /3rd (one third) of the height of the building +1 (one) metre.

(c)

The following services and structures shall not be included in the calculation of floor area ratio namely :-

(i)

a basement or cellar or covered space under a building constructed on stilt (not exceeding 2.56 metres in height),

provided that it is used for parking, installation of air conditioning equipments and other machines used for services and utilities of the building (lift room, pump house, fire fighting).

(ii)

Electric cabin of sub-station, watchman booth, pump house and garbage shaft stair case room and lift rooms above, the top most storey, architectural feature, chimneys and elevated tanks; and

(iii)

Spaces occupied by staircase rooms, lift and lobbies attached to them and circulation or movement corridors.

62.

Building height.

(1)

Notwithstanding anything contained in these Regulations, no building exceeding 27 (twenty seven) meters in height shall be permitted within the Bhubaneswar Development Area, except with the Approval of the full Authority, as stated in sub regulation [2] below.

(2)

The Authority shall not issue permission on case to case basis. The Authority, in a full meeting, shall specify the mouzas and units where buildings above 27 (twenty seven) metres height may be taken up. Before taking a decision on this, the concurrence of the Art Commission and the Airport Authority of India shall be obtained. A draft notification shall be published by the Authority, inviting suggestions and objections, giving thirty days' time under Regulation 12. After receipt of the objections and suggestions, if any, will be considered by the full Authority, and a decision will be taken. The areas in which buildings above 27 [twenty seven] metres height will be permissible, will be notified by the Vice Chairman of the Authority under Regulation 12. No request for approval of plan shall be entertained before expiry of one month from the date of publication of the final notification in this regard. No approval will be given before the expiry of two months from the date of publication of his notification.

63.

Departure from approved plan.

- If during the construction of a building any substantial departure from the approved plan is intended to be made by way of internal alterations or modifications, which will increase the potential occupancy, prior sanction of the Authority shall be obtained. The revised plan showing the deviation shall be submitted and the procedure laid down in these Regulations shall apply to such revised plan.

64.

Inspection.

(1)

The Vice-chairman of the Authority or his authorised representative shall inspect the building from time to time during construction.

(2)

If at any stage of construction it is noticed that there is possibility of threat to the structural stability of a multi-storeyed building on account of addition of extra loads, both horizontally and vertically, addition of extra floors or poor construction practices by using low quality materials etc, the Authority shall get the building inspected by its own technical personnel or by engaging experts from reputed institutes or firms. The expenditure incurred in this connection shall be realised from the builder or owner of the building.

(3)

The authorised technical person or the expert engaged for the above purpose shall inspect the building and carry out such tests if required as per the provision of NBC and submit a report mentioning the details of findings to the Authority.

(4)

If the Authority, after carefully examining the report as referred to in Clause-3 above, feels that actually there is threat to the structural stability of the building, the Authority shall declare the building unsafe for human habitation and cause disconnection of water supply and electricity to the building and initiate action for demolition of the building. The decision of the Authority in this regard shall be published as referred to in Regulation-12.

(5)

An appeal against an order made under sub-clause (4) above shall lie under Section 103 of the Act.

65.

Penal Action against Builders/Technical personnel.

(1)

Notwithstanding any thing contained in these regulation the Authority reserves the right to debar/black list the builder/technical person who has divulged from the professional conduct or has made any fraudulent statement or has misrepresented/suppressed any material facts in his application/plan or has involved in construction of the building deviating from the approved plan/norms of these Regulation.

(2)

Before taking any action under clause (1) specified above the Vice-chairman of the Authority shall issue a notice specifying the reasons thereof asking for a show-cause within 15 days as to why such builder/technical person shall not be debarred/black listed. After receipt of the show cause, if any, the Vice-Chairman shall place the matter before the Authority for a decision on debarring/blacklisting the technical person/builder. The decision of the Authority in this regard shall be published as referred to in Regulation-12.

(3)

An appeal against an order under Sub clause (2) above shall be under Section 103 of the Act.

66.

Occupancy of the building.

(1)

No person shall occupy or allow any other person to occupy any part of the multi-storied building for any purpose until such building or any part of it, as the case may be, is granted occupancy certificate by the Authority.

(2)

The builder shall cause to register an Association of apartment owners as required under the Orissa Apartment Ownership Act, 1982, before occupancy certificate for 50% or more of the floor area is given.

(3)

The Builder shall submit a copy of the agreement it has entered into with the apartment owners. This agreement shall show the terms of maintenance of public utilities.

67.

Completion of construction.

- Every applicant or owner shall submit a notice in Form-VII regarding completion of the construction of multi-storied building, to the Authority through the registered Architect, who has supervised the construction. The said notice shall be accompanied with the following documents.

(a)

Three copies of plan of the completed building.

(b)

A fee of Rs.5000.

(c)

Record of Rights relating to ownership.

(d)

Evidence that all public utility services, and in particular, sewerage, drainage, water supply, and electricity have been linked to the main public utility system.

68.

Issue of occupancy certificate.

(1)

The Vice Chairman on receipt of the notice of completion, alongwith all the required documents, shall take a decision to either issue or refuse occupancy certificate in Form-X within thirty days from the date of receipt of such notice. This fact shall be published in the public notice in the manner referred to in Regulation 12.

(2)

If the occupancy certificate is not issued by the Authority within sixty days from the receipt of notice under Regulation 61, the owner can prefer an appeal under Section 18 or 103 of the Act.

(3)

Where occupancy certificate is refused by the Authority, reasons, thereof shall be communicated to the applicant and the same shall be published under Regulation 12. An appeal against such a decision will lie under Section 18 or 103 of

the Act. The Appellate Authority shall be competent to seek the views of, and implead as parties, authorities in charge of public utility services, Competent Authority, as provided under the Act, under the Orissa Apartment Ownership Act, 1982, and apartment owners. Where non-provision of public utilities is likely to affect other residents, such residents can also be impleaded as parties.

Part-IV Zoning Regulations

69.

Zoning.

- In the Development Plan area various use zones namely, residential, commercial, industrial, administrative, institutional, open space uses, transport and communication use, green belt and natural drainage channel and water bodies having their zonal boundaries as indicated in the development plan shall be regulated as per the Table under Regulation-67. Except as otherwise provided no structure or land hereinafter shall be used and no structure shall be erected, re-erected or altered unless use is in conformity with the Regulations.

(2)

All existing places of worship, temples, churches, mosques etc. and burial and cremation ground shall be exempted from being treated as non-conforming uses, provided that continuance of such uses are not determinately to the locality.

(3)

All non-conforming uses of land and buildings shall be discontinued and the modified uses shall be made to conform with the proposed land use of the development plan within the time limit specified by the Authority.

70.

Different use of land.

(1)

Permission for different uses shall be accorded outright for principal use earmarked in the different zones described in column (2) of the Table No.17.

(2)

Upto 30% of the land in a permissible zone can be utilised for the purpose of ancillary and compatible uses as specified in column (3) of the said table. Permission shall be granted on first-come-first serve basis.

(3)

The purposes specified in column (4) of the said table shall not be permitted in the areas reserved for particular uses.

(4)

In the 'open space use' zone, activities like parks, playgrounds, temporary fairs, plantations, may be taken up. Only Residential buildings may also be permitted in the open space use zone if the following conditions are satisfied along with other conditions of these Regulations.

(i)

the land is a stitiban land and is not a leasehold land;

(ii)

the coverage is-not more than 40%;

(iii)

the height is not more than 7.0 (seven) metres; and at least 20 percent of land issued for plantation;-

(5)

In transport use zone activities relating to roads transport depots, bus terminal, bus stop, truck terminal, shall be permissible, in case of such use, a fee will be charged by the Authority, which shall be spent for development and ancillary facilities in these zones.

(6)

In green belt use zone, the activities like agriculture, plantation, burial grounds, solid waste disposal units, shall be permissible.

(7)

The permissions granted in exception of zonal use shall be incorporated in the public notice in the manner as referred to in Regulation 12.

(8)

Where a land put to mixed use in a particular zone as per Regulations, the main use should cover not less than 2/3rd of the total floor area and the ancillary use should not exceed 1 /3rd of the total area.

Land Use Permitted/prohibited In Different Use Zones

(See Regulation 70)

Table-17

Use zone

Use permitted

Upto 30% of the area to be permitted on special consideration

Use prohibited

(1)

(2)

(3)

(4)

Residential Use Zone

1. Residential, Hostel, Boarding

houses with density limitations, if any.

2. Schools

3. Health clinics

4. Social, cultural and

neighborhood, recreational institutions with adequate parking facilities

5. Public utilities and public buildings

6. Non-commercial agricultural

gardens, nursery and green houses

7. Any neighborhood recreation uses

including clubs and other semi-public recreational uses.

8. Accessory uses clearly

incidental to residential use (except service uses) which will not create a nuisance or hazard.

9. Customary home occupation if the area for such use does not exceed 25 percent of the total floor area of the dwelling and there shall be no public display of the goods.

1. Places of worship

2. Professional, Commercial,

Government and Semi-Government offices, Institutions

3. Service uses and shops

4. Hotels, Hospitals and Sanatoria

not treating contagious diseases mental patients, if setback and coverage of plots are such as not to constitute nuisance to the residential area.

5. Colleges and Research

Institutions of noncommercial nature, if the building is located at a distance of not less than 8 metres. From the boundary of the plot

6. Rearing of poultry and cattle

for noncommercial use if no bird or animal is Housed closer than 6 metres of a Dwelling.

7. Removal of gravel, clay sand or

stone for development of site which will not result in the stagnation of water or cause other nuisance.

8. Bus stop

9. Petrol filling Station on roads
of 12 metres. Or more width if they fulfill other requirement
laid down in this connection.
10. Service Industries and storage
yards incidental to main use.
11. Crematories and electric
crematorium,
12. Philanthropic uses
13. Places of entertainment
including cinema house can be permitted provided these are
located on the important roads of not less than 12 metres. Width
and no traffic problems are created.
14. The planning Authority in
consultation with the Director of Town Planning, Orissa, can
allow increased residential density, if in its opinion the
purposed densities are desirable and necessary.
15. Service industries/ Cottage industries.
 1. Slaughter houses, Industries
 2. All uses not specifically permitted
2. (a) Commercial Use Zone (Central Business District)
 1. Retail shop
 2. Business and Professional
Offices
 3. Services uses like Hair cutting
Saloons, tailoring shops, beauty parlour, laundry and dry
cleaning shops, etc.
 4. Restaurants, hotels and eating
houses
 5. Boarding houses, social and
welfare institutions
 6. Clinics, public utilities and
buildings.
 7. Parking lots.
 8. Public recreational uses.
 9. Meat, fish, Vegetable &
Fruit markets.
 10. Wholesale & retail shops
 11. Wholesale storage yards.
 12. Weigh bridge & other uses incidental to main use.
 1. Place of entertainment and
recreational uses.
 2. Place of worship
 3. Petrol filling and service
station.
 4. Service garage provided they do
not directly about the main road.
 5. Bus stop
 6. Printing presses employing not
more than 10 persons.
 7. Government and Semi-Government
offices/institutions

8. Bank offices.

9. Residence no floor other than ground floor.

10. Hotels

1. Polluting industries.

2. All uses not specifically permitted in the column (2) and (3)

3. Large scale storage of petroleum materials expecting in area, specifically earmarked for the purpose.

(b) Zonal Commercial Area, (District Centre)

1. Retail shops

2. Restaurants & eating house

3. clinics/nursing homes

4. Business & professional offices and institutional.

5. Parking lots.

6. Weekly market

7. Public utilities and services

8. Hotels

9. Parks, playgrounds, clubs

10. Service industries like motor garage workshop radio and television repairing shop alike.

1. Government offices in other than ground floor

2. Professional offices other than ground & first floor.

3. Bus stop.

4. Printing Press employing not more than 10 employees.

5. Banks

6. Place of entertainment and recreational uses

7. Place of worship

8. Petrol filling and service station

9. Residences on floor other than ground floor

1. Polluting industries

2. All uses not specifically permitted in columns (2) & (3)

3. large scale storage of petroleum and other inflammable materials excepting in areas, specifically earmarked for the purpose.

(c) Street shopping and other supplying area.

1. Retail shop.

2. Business and professional offices

3. Services uses like hair-cutting, saloons, tailoring industry and dry cleaning etc.

4. Restaurants and eating houses

5. Boarding houses, social and welfare institutions.

6. Clinics, public utilities and buildings
7. Parking lots.
8. Floor, Rice meals not engaging more than 10 Horse Power motors.

1. Place of entertainment, recreational uses, hotels
2. Government & Semi-Government offices and institutions.
3. Petrol filling station on roads of 40 or more width.
4. Coal and wood depot
5. Service garages provided they do not directly abut the main road
6. Service industries
7. Printing Press

1. Polluting industries
2. All uses not specifically permitted in columns (2) and (3)
3. Large scale storage of petroleum and other inflammable materials excepting in areas, specifically earmarked for the purpose.

(d) Whole-sale Warehousing and Storage.

1. Wholesale and retail shops.
2. Wholesale and storage yard.
3. Commercial and business offices
4. Restaurants
5. Public utilities and buildings
6. Railway and road freight station
7. Weigh bridge and other uses incidental to main

1. Truck terminus and parking
2. Schools, clinics, social and welfare institutions
3. Filling and service stations on roads of 12 metre or more width
4. Government and semi Government offices
5. Residences on floor other Than on Ground floor
6. Junk-yards
7. Places of entertainments

1. Polluting Industries
2. All uses not specifically permitted in columns (2) and (3)
3. Large scale storage of petroleum and other inflammable materials excepting in areas, specifically earmarked for the purpose

3. Industrial use zone, light manufacturing industry, service industry and medium industry.

1. Industries which will not cause excessive or objectionable noise, vibrations, smoke, gas, fume,

odor, dust effluent and objectionable conditions.

2. Warehousing and storage of materials excepting these inflammable.

3. Public utilities and buildings, Hotels, IT Centres.

4. Parking, loading, unloading areas must be provided for all uses.

5. Bus and Truck terminal

6. Railway and Road freight terminals

7. Petrol filling and servicing stations on roads of 40' or more width provided they fulfill other requirements laid down in this regard

8. Residential use for managerial and staff in consistent with size of the industry

9. Junk-yards

10. Railway siding

11. Canteen and recreational facilities for the employees

12. Institutional and utility use incidental to the main use

1. Hotels and canteens incidental to the main use.

2. Bone mill, leather tanning

3. Animal fat, drystuff

4. Slaughtering of animal and connected use.

5. Light industries, causing objectionable noise, vibration, gas, fume, smoke, odour, dust and other objectionable conditions

6. Coaltar and allied industries

7. Distilleries and breweries

8. Acid and fertilizer

9. Ammonia and bleaching power industries

10. Industrial, alcohol and limelium

11. Residential use for choudidar and guards

1. Polluting industries

2. General Residence

3. General business unless incidental to and on the same site with one industry.

4. Any manufacturing establishment detrimental by way of nuisance or hazard

5. All uses not specifically permitted in column 2 & 3

4. Administrative Use Zone.

1. Local, State and Central Government, offices

2. Research Institutions, Social and Cultural Institutions

3. Public utility buildings.

4. Uses incidental to Government,

offices.

5. Local Municipal offices

1. Residential and other uses which

in no way causing any nuisance and hazard, (incidental to main use)

2. Hotels /Hostels

3. Retails shops/ shopping complex

4. Bus and Railway Passenger terminals

5. Commercial use

All uses not specifically permitted in Column (2) and (3)

5. Institutional and utility use zone

1. Educational and Medical

Institutions, Research institutions

2. Hotels / Hostels

3. Social and cultural institutions

4. Monuments and religious institutions

5. Local municipal and community facilities, public utility buildings

6. Radio transmitters and wireless stations

Residential and other uses (which

in no way cause any nuisance and hazard incidental to main use)

Bus Stop

All uses not specifically permitted in Column (2) and (3)

6. Open space use zone

1. All recreational uses including

parks, play grounds, parkways, picnic spots, stadium

2. Special educational and recreational areas

3. Bus and Railway passenger terminals and car parking area

4. All residential uses subject to fulfillment of condition specified in Regulation 112(4)

1. Out-door theatres, restaurants and selling of eatables.

2. Public utility and municipal facilities

3. Uses clearly incidental use which will not create nuisance and hazard

4. Dwelling for watch and ward staff

All uses not specifically permitted in column (2) and (3).

7. Transportation use zone

1. Roads and road transport depots and parking areas

2. Bus terminus and bus stop

3. Parking lots

4. Development of traffic islands

5. Truck terminus

6. Expansion of existing railway and aerodrome

1. All ancillary activity and facilities within the bus stand

and truck terminus, railways and aerodrome

All uses not specifically permitted in column (2) and (3)

8. Green-belt zone

1. Agriculture and Horticulture

2. Diary and poultry farming ,milk

chilling centre farm houses and there accessory buildings

3. Brick, lime-kiln and removal of

play beyond distance of a half mile from developable area

4. Burial and cremation grounds

5. Trenching grounds

6. Construction of building by

government/ development authorities beyond the existing developed

basti area

7. Building construction over plot

covered under town planning scheme and conforming uses

8. Normal expansion of land uses only in the existing

homestead land of the villages subject to condition laid down by
the authority

1. Houses incidental to place of

worship (Dharmasala, lodging, rest shed etc)

2. School and libraries educational

and cultural buildings

3. parks and other recreational

uses

4. Storage processing and sale of

farm products

5. Servicing and repair of farm

machineries and the sale of agricultural supply

6. Small scale fertilizer

chemicals, alcohol and distillery industry

7. Institutional uses incidental to the main use

9. Natural drainage channel zone

Agriculture

Horticulture

No construction of any kind

Part-V Compounding

71.

Restriction on compounding.

(1)

Any deviation pertaining to unauthorised development shall not be compounded :

(i)

where construction has been undertaken on Government land or land belonging to local body or a land not owned by the person undertaking such development.

(ii)

where FAR or height has been exceeded or front setback has been reduced from the prescribed norms under these regulation and/or charges for public utility services has not been deposited;

(iii)

where development has been undertaken un-authorisedly within the prohibited limits of any ancient or archaeological monuments or where such developments interfere with the natural drainage of the locality; -

(iv)

where development has been undertaken unauthorisedly over the area earmarked or approved for parking; and,

(v)

where road or drain whether public or private, whether constructed or natural, has been encroached.

(2)

Subject to the provisions contained in sub-Regulation (1), the Authority shall have the power to determine further such circumstances under which compounding may be prohibited. Every such decision shall be notified under Regulation 12, and will be enforceable for all plans submitted for approval after expiry of six months from the date of Notification.

(3)

The Authority may, either before or after the institutions of the proceedings under the provision of the Act compound any offence

(i)

where development has been undertaken without permission, but within the frame work of use restrictions and the provisions of these Regulations applicable to the concerned plot;

(ii)

where development has been undertaken in deviation of the approved plan, but within the framework of the use restriction and the provisions, norms, and stipulations of these Regulations; and

(iii)

The Authority may however compound deviations upto 5% (five percent) beyond the permissible norms of these regulation with respect to coverage, side and rear setbacks.

72.

Power of the Government to exempt.

(1)

Notwithstanding anything containing in these, Regulation, the Government may compound any deviations in the constructions undertaken prior to enforcement of these Regulations.

(2)

For the purpose of compounding the deviations under clause-(1) the Government may formulate a Scheme specifying a maximum time period of four months after publication of the same in the Gazette, local news paper, electronic media and Web site of the Government and Authority.

Note- The above two clauses shall cease its effect after six months from the date of publication of this Regulation.

73.

Compounding amount.

(1)

The compounding amount shall be such as may be decided by the Authority with approval of the Government from time to time.

(2)

At least 50% of the compounding amount shall be utilised for development of public utility services, and protection of heritage sites and structures.

(3)

The instances of compounding, the compounding amount collected, and the amount utilised for development or deposited with agencies of public utility services shall be published in the public notice in the manner referred to in Regulation 12.

Part-VI Removal of Unauthorised Constructions

74.

Unauthorised construction.

(1)

The Secretary of the Authority shall be competent to order for removal of any construction which in his opinion, is in violation of any of the provisions of the Act, rules, or these Regulations, under the Act.

(2)

The Secretary of the Authority may, if he is of such opinion, seek the advice of the Vice-Chairman regarding implementation of any provision of these Regulations.

(3)

The Vice-Chairman may call for any records, and in writing, give direction to the Secretary for implementation of any

provision of these Regulations.

Part-VII General

75.

Repeal and Savings.

(1)

The Bhubaneswar Development Authority (Multi-storeyed Buildings) Regulations, 1998 and the Bhubaneswar Development Authority (Planning and Building Standards) Regulations, 1993 are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Regulations so repealed shall be deemed to have been done or taken under these Regulations, and those pending on the date of commencement of these Regulations, shall be done or taken under the provisions of these Regulations.

(3)

Where a plan had been approved in relaxation of the norms of earlier Regulations, through compounding or otherwise, and subsequently new construction has been taken up without plan approval, or, where, permission for fresh construction is sought for, the stipulations of the present Regulation shall apply.

Illustration - If additional FAR is requested for, then, the present stipulations regarding setback, coverage, and height restrictions shall apply.

76.

Educating the People.

(1)

The Authority shall take a pro-active role in educating the land owners within their jurisdiction so that (a) there will be a planned growth within development area and (b) expensive demolition will be avoided.

(2)

A copy of these Regulations shall be printed by the Authority and sold to public in the sales counter of the Authority.

77.

Interim Development Plans.

(1)

The Authority may prepare Interim Development Plans (IDP) for newly included development areas including stitiban/ryoti land within a reasonable time frame so that development may not be held up in the name of pendency of Interim Development Plan. Where such IDP has not been prepared, the general provisions of this Regulation shall apply without any zonal restrictions.

(2)

The Authority shall ensure that resources for land acquisition and cost of land are mobilised or are likely to be mobilised within the time frame projected for implementation of such Interim Development Plans.

78.

Provision of development plan to prevail.

(1)

In case any of the provisions of these regulations are at variance with those contained in any Development Plan or Town Planning Scheme/the provisions of such plan or scheme shall prevail.

79.

Applicability of National Building Code of India.

- Where no express provision has been made in respect of any matter connected with planning and building standards by the Act, the Rule, the Development Plan, the Town Planning Schemes, or these Regulations or by any resolution of the Authority, the provisions of the National Building Code of India shall mutatis mutandis be applicable.

80.

Barrier free access for the disabled.

- Adequate provision for facilitating easy access of disabled persons shall be made in all public buildings in accordance with the provisions of National Building Code of India including the minimum facility to reach the staircase/lift without any barrier.

81.

(1)

The qualification, experience and competence of technical personnel and Builders are given in Schedule-I, which are to be followed as per relevant regulations.

(2)

The industries that can be considered in residential area is to be decided by the Authority in consultation with Directorate Town Planning, Orissa from time to time.

(3)

The forms prescribed for application under Section-16 (1) permission under Section-16(3) drawing attention of Vice-Chairman u/s 16(7) of ODA Act and others in connection with commencement of work, completion certificate, Occupancy Certificate, Structural stability certificate and periodic progress report are provided in Schedule-2.

82.

Constitution of D.P. & B.P. Committee.

(1)

The Authority may constitute a Committee under Section-6 of ODA Act to be called Development Plan and Building Permission Committee with members from the following organizations/department besides those required from BDA.

1. Bhubaneswar Municipal Corporation
2. Directorate of Town Planning, Orissa
3. Chief Architect, Orissa
4. Housing and Urban Development Department, Orissa
5. Public Health Engineering Department , Orissa
6. Fire Services
7. G.A. Department, Orissa
8. Orissa State Pollution Control Board

Additional member(s).can be associated for specific meetings depending upon the purpose.

(2)

The Authority may by notification delegate such of its powers relating to approval of schemes, projects and building plans to the Committee constituted under Sub-Regulation (1) as it may deem appropriate.

(3)

Matters and cases relating to permission under Section 16 of the ODA Act and such others which are deemed fit may be referred to the Committee from time to time for advice & recommendations.

83.

Activities along National Highway.

- While regulating activities along National Highway the provisions contained under the relevant rules and regulations are to be adhered to.

84.

Decision of the Government to be final.

- In case of any dispute in interpretation of these regulations, the decision of the State Government shall be final.

Schedule 1

Qualification, Experience & Competence Of Technical Personnel And Builder

1. Architect

(A)

Qualification & Experience

The minimum-qualification for an Architect shall be the Associate Membership of the Indian Institute of Architect or such degree or diploma which makes him eligible for such membership or such qualifications as listed in the Architects Act 1972, and shall be registered with the Council of the Architecture under the Act. In addition to the above qualifications the Architect should have at least two years experience in professional work.

(B)

Competence

The Licensed Architect shall be competent to carry out the work related to the building permit as given below and shall be entitled to submit.

(i)

All plans and information connected with the building permit.

(ii)

Structural details and calculations for residential buildings on plot up to 500 sq. metres and upto three storeys or 10 metre in height.

(iii)

Certificate of supervision and completion of all buildings.

(C)

Duties & Responsibilities.

(i)

He/She shall be responsible for making adequate arrangements to ensure not only that the work is executed as per the approved plans but also in confirmation with the stipulations of the National Building Code and the I.S.I. standards for safe and sound construction non-hazardous, functioning of the services incorporated in the building and for making adequate provisions for services and equipment for protection from the fire hazards as per the stipulations of the National Building Code in the buildings and shall obtain N.O.C. from the Chief Fire Officer or concerned designated Authority/ Consultant before applying for occupation certificate.

(ii)

He/She shall, on behalf of the owner, apply for the progress certificates completion certificates and the occupation certificate and obtain the same is required under the regulations.

(iii)

If the services of the registered architect are terminated, he shall immediately inform the Competent Authority about his termination and the stage of work at which his services have been terminated. The registered architect appointed on the job shall inform the Authority of any deviation that might have occurred on the site with reference to the approved drawings and the stage at which he is taking over the charge after Authority has inspected the site for his report, the newly appointed architect shall allow the work to proceed under his direction.

(iv)

The registered architect appointed on the work shall inform the Authority immediately on discontinuation of the services of the registered/structural designer, construction contractor, clerk of works, site supervisor, plumber or electrician and shall not allow the work to continue till the vacancy is filled by appointment of another person and the certificate of appointment of such person is submitted in the Authority.

(v)

He/She shall instruct the relevant agency that adequate provisions are made for ensuring the safety of workers and others during excavation, construction and erection.

(vi)

He/She shall instruct the relevant agency that adequate provisions are made for providing safe and adequate temporary structures required for construction and erection.

(D)

Registration

(i)

The registration fee if any shall be payable as prescribed by the Authority from time to time.

(ii)

The Authority may black-list an architect in case of serious defaults or repeated defaults and shall inform the council of Architect Act, 1972. The registration shall be liable to be revoked temporarily or permanently by the Authority in such cases of negligence or default.

2. Engineer

(A)

Qualification and Experience

The minimum qualification for an Engineer shall be the Corporate Member of Civil Engineering Division of the Institution of Engineers, India or such Degree or Diploma in Civil, Municipal or Structural Engineering, which makes him eligible for such membership. In addition to the qualifications stated above the Degree Engineers and Diploma Engineers should have at least two and five years of experience respectively in professional work.

(B)

Competence

The Licensed Engineers shall be competent to carry out the work related to the building permit as given below and shall be entitled to submit:

(i)

All plans and information connected with building permit.

(ii)

Structural details and calculations of buildings on plot up to 500 square metres and up to four storeys excluding basement/stilt or below 15 metre in height.

(iii)

Certificate of supervision and completion for all buildings.

(C)

Duties & Responsibilities

(i)

He/She shall be responsible for making adequate arrangements to ensure not only that the work is executed as per the approved plans but also is confirmation with the stipulations of the National Building Code and the I.S.I. standards for safe and sound construction non-hazardous, functioning of the services incorporated in the building and for making adequate provisions for services and equipment for protection from the fire hazards as per the stipulations of the National Building Code of India in the buildings and shall obtain N.O.C. from the Chief Fire Officer or concerned designated Authority/Consultant before applying for occupation certificate.

(ii)

He or She shall, on behalf of the owner, apply for the progress certificates completion certificates and the occupation certificate and obtain the same as is required under the regulations.

(iii)

If the services of the registered Engineer are terminated, he shall immediately inform the Authority about his termination and the stage of work at which his services have been terminated. The registered Town Planner appointed on the job, shall inform the Authority of any deviation that might have occurred on the site with reference to the approved drawings and the stage at which he is taking over the charge. After Authority has inspected the site for his report, the newly appointed Engineer shall allow the work to proceed under his direction.

(iv)

The registered Engineer appointed on the work shall inform the Authority immediately on discontinuation of the services of the registered/structural designer, construction contractor, clerk of works, site supervisor, plumber or electrician and shall not allow the work to continue till the vacancy is filled by appointment of another person and the certificate of appointment of such person is submitted in the Authority.

(v)

He or She shall instruct the relevant agency that adequate provisions are made for ensuring the safety of workers and others during excavation, construction and erection.

(vi)

He shall instruct the relevant agency that adequate provisions are made providing safe and adequate temporary structures required for construction and erection.

(D)

Registration

(i)

The registration fees if any shall be payable as prescribed by the Authority from time to time.

(ii)

If he/she is found negligent in his/her duties and responsibilities. The Authority may black-list an Engineer in case of serious defaults or repeated defaults and shall inform the Institute of Engineers, India to take suitable action against such person. The registration shall be liable to be revoked temporarily or permanently by the Authority in such cases of negligence and default.

3. Structural Engineer

(A)

Qualification & Experience

The minimum qualifications for a structural engineer shall be graduate in civil engineering of recognized Indian or foreign

university, or Corporate Member of Civil Engineering Division of Institution of Engineers (India) or equivalent overseas institution, and with minimum 3 years experience in structural engineering practice with designing and field work.

Note - The 3 years experience shall be relaxed to 2 years in the case of post graduate degree of recognized Indian or foreign university in the branch of structural engineering. In case of doctorate in structural engineering, the experience required would be one year.

(B)

Competence

The licensed structural Engineers shall be competent to submit the structural details and calculations for all buildings and supervision.

In case of buildings having special structural features, as decided by the Authority, which are within the horizontal areas and vertical limits specified in Chapter A-2.1.1 (b. A-2.2.1(b) and A-2.4.1(a) of NBC of India shall be designed only by structural engineers.

(C)

Duties and Responsibilities

(i)

To prepare a report of the structural design.

(ii)

To prepare detailed structural design and to prescribe the method and technique of its execution strictly on the basis of the National Building Code or relevant Indian Standard specifications.

(iii)

To prepare detailed structural drawings and specifications for execution indicating thereon, design live loads, safe soil bearing capacity, specifications of material, assumptions made in design, special precautions to be taken by contractor to suit the design assumptions etc. whatever applicable.

(iv)

To supply two copies of structural drawings to the site supervisor.

(v)

To inspect the works at all important stages and certify that the work being executed is upto the satisfaction of the Architect/Engineer.

(vi)

To certify the structural safety and overall structural soundness of the building to the Architect/Engineer.

(vii)

To advise the Owner/Architect/Engineer for arranging for tests and their reports for soil, building material etc. for his evaluation and design consideration.

(viii)

He shall prepare the revised calculations & drawings in case of any revision with reference to the earlier submission of drawing and design in a particular case.

(ix)

To submit the certificate of structural safety and over all structural soundness of building to Authority.

(D)

Registration

(i)

The registration fees if any shall be payable as prescribed by the Authority from time to time.

(ii)

If he/she is found negligent in his/her duties and responsibilities. The Authority may black-list an Engineer in case of serious defaults or repeated defaults and shall inform the Institute of Engineers, India to take suitable action against such person. The registration shall be liable to be revoked temporarily or permanently by the Authority in such cases of negligence and default.

4. Town Planner

(A)

Qualification & Experience

The minimum qualification for a town planner shall be the Associate Membership of the Institute of Town Planners or

post-graduate degree or diploma in town and country planning which makes him eligible for such membership or recognized by the Public Service Commissions for the post of Assistant Town Planner.

(B)

Competence

The licensed town planner shall be entitled to submit :

(i)

all plans and related information connected with development of land of all areas; and

(ii)

Certificate of supervision for development of land of all areas.

(C)

Duties and Responsibilities

(i)

He/She shall be responsible for marking adequate arrangements to ensure not only that the work is executed as per the approved plans but also is confirmation with the stipulations of the National Building Code and the I.S.I. standards for safe and sound construction non-hazardous, functioning of the services incorporated in the building and for making adequate provisions for services and equipment for protection from the fire hazards as per the stipulations of the National Buildings Code of India the buildings and shall obtain N.O.C. from the Chief Fire Officer or concerned designated Authority/Consultant before applying for occupation certificate.

(ii)

He/She shall, on behalf of the owner, apply for the progress certificates completion certificates and the occupation certificate and obtain the same is required under the regulations.

(iii)

If the services of the Town planner are terminated he shall immediately inform the Authority about his termination and the stage-of work at which his services have been terminated. The registered Town Planner appointed on the job, shall inform the Authority of any deviation that might have occurred on the site with reference to the approved drawings and the stage at which he is taking over the charge. After Competent Authority has inspected the site for his report, the newly appointed Town planner shall allow the work to proceed under his direction.

(iv)

The registered architect appointed on the work shall inform the Authority immediately on discontinuation of the services of the of the registered/structural designer, construction contractor, clerk of works, site supervisor, plumber or electrician and shall not allow the work to continue till the vacancy is filled by appointment of another person and the certificate of appointment of such person is submitted in the Authority.

(v)

He/She shall instruct the relevant agency that adequate provisions are made for ensuring the safety of workers and others during excavation, construction and erection.

(vi)

He/She shall instruct the relevant agency that adequate provisions are made for providing safe and adequate temporary structures required construction and erection'

(D)

Registration

(i)

The registration fee if any shall be payable as prescribed by the Authority from time to time. "

(ii)

The Authority may black list the Town planner in case of serious defaults or repeated defaults and shall inform the Institute of Town planners, India. The registration shall be liable to be revoked temporarily or permanently by the Authority in such case of negligence or default.

5. Supervisor

(A)

Qualification and Experience

The minimum qualifications for a supervisor shall be qualification in architecture or engineering equivalent to the minimum qualification prescribed for recruitment to non-gazetted service by the Government of India plus 5 years

experience in building design, construction and supervision.

(B)

Competence

The licensed supervisor shall be entitled to submit:

(i)

All plans and related information connected with building permit for residential buildings on plot up to 200 m² and up to two storeys or 7.5 m in height; and

(ii)

Certificate of supervision for buildings in (i).

(C)

Duties and Responsibilities

(i)

To adhere strictly to the structural drawing specifications and written instructions of the structural designer and Architect/Engineer.

(ii)

To follow the provisions of N.B.C. or I.S. specifications as regards materials, components, quality control and the process of construction.

(iii)

To provide for safety of workers and others during excavation, construction and erection.

(iv)

To provide safe and adequate temporary structure required for construction and erection.

(v)

To bring to the notice of the structural Engineer and Architect/ Engineer/any situation or circumstances which in his opinion are liable to endanger the safety of structure.

(vi)

To deposit with the Authority one set of working drawings of the works executed along with the progress certificates before proceeding to the next stage of the work.

(vii)

He shall be in charge of site and responsible for overall supervision of the work.

(viii)

He shall ensure that all the works under his charge are carried out in conformity with the approved drawings and as per the details and specifications supplied by the registered Architect/ Engineer.

(ix)

He shall take adequate measures to ensure that no damage is caused to the work under construction and the adjoining properties.

(x)

He shall also ensure that no undue inconvenience is caused in the course of his work in the people in neighbourhood.

(xi)

He shall also ensure that no nuisance is caused to traffic and neighbouring people by way of noise, dust, smell, vibration etc. in the course of his work.

(D)

Registration

(i)

The registration fee if any shall be payable as prescribed by the Authority from time to time.

(ii)

If he/she is found negligent in his/her duties and responsibilities. The Authority may black-list supervisor in case of serious defaults or repeated defaults. The registration shall be liable to be revoked temporarily or permanently by the Authority in such cases of negligence and default.

6. Group Agency

When any Group or Agency comprising of qualified Architect/Engineer/ Town Planner is practising, then the qualifications and experience, competence, duties and responsibilities and registration will be the combination individual

qualification and experience, competence, duties & responsibilities and registration as provided in Schedule 1 to 5.

7. Builder

(A)

Qualification and experience

(a)

The person/firm engaged in construction activities/building activities in an urban area having proved merit and experience may be considered for registration as a builder. He/She should have at least five years experience in the line.

(b)

A person or group of persons having a qualification of Civil Engineering Diploma/Degree, Architecture and Planning Degree may be registered and builder. He/She should have at least three years experience in the professional work.

(c)

The Authority may classify the builders into three classes namely, Class-A, Class-B and Class-C considering their experience and annual turnover.

(B)

Duties and Responsibilities of Builders

(1)

Any person acting in the capacity of the owner shall be the bona fide owner or authorised agent of the owner for development work proposed. He shall satisfy the Authority that he is the actual owner to undertake total responsibility as the owner, employer and manager of the property and its development and of all the assets and liabilities of the property and the project.

(2)

He/She shall appoint a registered Architect/Engineer/Town Planner to prepare plan, design, drawings and specifications and to direct the execution of the work in accordance with the requirements of these regulations.

(3)

The appointment of the registered Architect/Engineer/Town Planner shall mean that he/she has authorised them to do all things necessary and to take all adequate measures for preparing the design, drawings and specifications for the project and to appoint on his behalf appropriate persons to act as registered Site Supervisor, required for the proper execution of the project and to retain on behalf of the owner any other specialist or expert required on the work of the project.

(4)

He/Architect/Engineer/Town Planner shall give written information to the Competent Authority about the commencement of the execution work. He shall see that all requirements of Authority are fulfilled by the registered Architect/Engineer/Town Planner.

(5)

He shall not cause or allow any deviations from the approved drawings in the course of the execution of the project against the instruction of Architect/Engineer/Site Supervisor/Structural Designer and shall bear all responsibility for any irregularity committed in the use and function of the building or its parts for which the approval has been obtained.

(6)

He shall inform the Authority immediately if the services of the Architect/Engineer appointed on the project are terminated or has ceased to function due to any reason and shall not allow any work to proceed till another Architect/Engineer is appointed on the project.

(7)

When no registered construction contractor or site supervisor is required to be appointed and not appointed he shall be responsible for their duties and responsibilities under the Regulations.

(8)

He shall not commence the use of building or shall not give the possession to occupy the building to any one before obtaining the occupancy certificate from the Authority.

(9)

He shall provide adequate safety measures for structural stability and protection against fire hazards likely from installation of services like electrical installation, plumbing, drainage, sanitation, water supply etc. wherever required

under the regulations.

(10)

He shall exhibit the names of registered persons only, on site and no additional names will be exhibited/displayed.

(11)

He shall explain the construction design and its intended use as per approved plan only, to the prospective purchaser of the premises under construction.

(C)

Registration

(i)

The builders shall have to be registered with the Authority on payment of such fees as decided by the Authority from time to time.

(ii)

The Authority may debar or blacklist the builder as referred to in Regulation-8 and Regulation-62.

Schedule 2

Form-I

Part-1 Application Form

(See Regulation 6 & 62)

Building Plan application Form

Form No.....

Authorised Signature

Application for Permission for Development of Building (Other Than Sub-Division of Land) Under Section-16 of The Orissa Development Authorities Act, 1982

From:

For Office use only

Name.....

Address.....

Regd. No.....

(in Block letters)

(Tel No).....

Receipt No. & Date.....

Fees realized.....

To

The Vice-Chairman,

Bhubaneswar Development Authority,

Bhubaneswar.

Sir/Madam,

I/We hereby apply for permission to undertake development and carry out :-

(a)

Construction of storeyed building:

(b)

Re-construction of an existing building;

(c)

Alteration/addition to the existing building:

(d)

Revalidation/renewal of plan for construction of allstoreyed building;

(e)

(If any other, please specify)

in respect of Plot No.....Khata No.....Village.....Thana No of Holding No Ward No of.....Municipality/NAC within the development area of Bhubaneswar. The said land building shall be used for.....purpose.

I/We enclosed herewith the following plans (7 copies in case of privately owned plots/8 copies in case of Government,

leased Government, plots) and specifications duly signed by me/registered Architect/Licensed/Engineer/Supervisor/Group or agency being Regd. No...../Licence No who have proposed the plans, designs etc and who will supervise the developments.

I/We the owner(s) of every part of the land/building to which this application relates, requests, the permission for the above development may kindly be accorded.

Place

Signature of Owner(s)

Date:

Name of Owner(s)

Form-I

Part-II (See Regulation 6 & 52)

From :

(Name and address of the Architect/Engineer/Supervisor/Group with Registration Licence No.)

To

The Vice-Chairman,

Bhubaneswar Development Authority,

Bhubaneswar.

Sir/Madam.

I/We hereby certify that the erection/re-erection/demolition of material alteration in of building in respect of Plot No Khata No. Village.....Thana No.....Holding No.....Ward No.....shall be carried out under my/our supervision and I/We certify that all the materials (type and grade) and the workmanship of the work shall be generally in accordance with the general specifications submitted along with and that shall be carried out according to the sanctioned plans and the structured designs proposed by the taking into account of all safety factors recommended by NBC.

Place.....

Yours faithfully

Date.....

Registered Engineer/Supervisor/Group

Form-II

Bhubaneswar Development Authority

[See Regulation 10(1)]

No...../BDA, Bhubaneswar

Dated.....

Permission Under Sub-Section (3) of the Section-16 of the Orissa Development Authorities Act, 1982 (Orissa Act, 1982) is hereby granted in favour of.

Shri/Smt.....

(a)

Sub-Division of lands.

(b)

Institutions of change of the used land or building.

(c)

Construction of a ...building

(d)

Reconstruction of building.

(e)

Alternation of

(f)

Alternation or additions in the existing building.

.....(Specify in respect of Plot No.....Khata No.....Drawing No

.....Village.....Thana No.....Holding No.....Ward No of.....Municipality/NAC with the

Development plan area of subject to following additions/restrictions.

(a)

The land/Building shall be used exclusively.....purpose and the uses shall not be changed to any other use without prior approval of this Authority.

(b)

The development shall be undertaken strictly according to plans enclosed with necessary-permission endorsement.

(c)

Parking space measuring.....Sq.ft. as shown in the approval plan shall be left open to sky and no part of it will be build upon.

(d)

The land over which construction is proposed is accessible by an approved means of access of.....ft. in width.

(e)

The land in question must be in lawful ownership and peaceful possession of the applicant.

(f)

The applicant shall free gift.....ft. wide trips or land in the.....Municipality/NAC for the further widening of the road to the standard width.

(g)

The permission is valid for period of three years with effect from the date of its issue.

(h)

Permission accorded under the provision of Section 16 of ODA Act, can not be construed as an evidence in respect of right, title interest of the plot over which the plan approved.

(i)

Any dispute arising out of land record or in respect of right title interest after this approval the plan shall treated automatically cancelled during the period of dispute.

(j)

Any other conditions.

By Order

Authorised Officer

Bhubaneswar Development Authority

Memo No...../BDA, Bhubaneswar

Dated.....

Copy forwarded alongwith Copies of the approved plans to Shri/Smt.....

Authorised Officer

Bhubaneswar Development Authority

Memo No...../BDA, Bhubaneswar

Dated.....

Copy with a copy approved plan forwarded to the Executive Officer, Bhubaneswar Municipal/Executive Officer, Khurda NAC/Executive Officer, Jatni, NAC for information.

Authorised Officer

Bhubaneswar Development Authority

Memo No...../BDA, Bhubaneswar

Dated.....

Copy forwarded to the Land Officer, G.A., Department, Bhubaneswar. Director of Town Planning, Orissa, Bhubaneswar. Enforcement Section, BDA, Bhubaneswar.

Authorised Officer

Bhubaneswar Development Authority

Form-III

[See regulation 10(2)]

Application Form Drawing of Attention Under Sub-Section (1) of Section-16 of the Orissa Development Authorities Act,1982.

From :

(Name and address of the applicant in block letters)

To
The Vice-Chairman,
Bhubaneswar Development Authority,
Bhubaneswar.

Subject : Statutory Notice and Sub-section (7) of Section-16 of the ODA Act, 1982.

Sir/Madam

I/We do bring to your kind notice that I/We had applied for permission to the Bhubaneswar Development Authority on.....to undertake development with respect to Plot No.....Khata No.....Village.....Thana No.....Holding No.....Ward No within the Development Plan area of.....Municipality/NAC. My/Our application was registered vide No dated.....Two months have elapsed since the submission of my/our application and I/We have not received any communication with respect to the said application.

Please take notice that if within a further period of one month from the date of receipt of this notice by you no communication either granting or refusing permission on requisitioning any relevant information is received by me/us. I/We shall presume that permission as applied for has been granted in my/our favour.

Place.....

Yours faithfully

Date.....

Signature of the applicant(s)

Form-IV

(See Regulation 13)

Form of Register to be maintained under Sub-section (12) of Section 16

Sl. No.

Name and address of the applicant

Date of receipt

Date of permission with letter No.

Date of refusal with letter No.

(1)

(2)

(3)

(4)

(5)

Date of endorsement to Enforcement Branch

Date of return from Enforcement Branch

Date of sending to record room

Signature of the dealing Assistant

Signature of the Section Officer

(6)

(7)

(8)

(9)

(10)

Form-V

Form of Notice For Commencement Of Work to be Furnished by the Plot Owner(S) & the Developer

[(See Regulation 14, 54(1)]

From :

(Name and address in Block Letters)

To

The Vice-Chairman,

Bhubaneswar Development Authority,

Bhubaneswar.

Sir,

I/We hereby give notice that the erection of building in respect of Plot No.....Khata No.....Village....Ward No.....will be commenced on.....as per the permission given in your letter No.dated....under the supervision Registered Architect/Registered structural Engineer, Name.....Regn. No.....in accordance with the approved plan.

Yours faithfully,

Signature of the Owner(s) & Developer.

Form-VI

Certificate of Completion

[(See Regulations 18(1) & 67)]

(To be given by the owner and Counter Signed by the Registered Architect/Registered Structural Engineer. To be submitted in Triplicate)

Office Use

Date of Receipt

Amount of fee deposited.....

Receipt No. & Date.....

From :

(Name and address in Block Letters)

To

The Vice-Chairman,

Bhubaneswar Development Authority,

Bhubaneswar

Sir,

I/We hereby certified that the erection of building as per the schedule below. Plot No.....Khata No.....Mouza.....Ward No.....has been supervised by me/us and has been completed on.....Date.....Strictly according to the plan sanctioned vide letter No.....dated.....The work has been completed to my/our best satisfaction. All the material (type of grade) have been used strictly in accordance with the general and detail specification. The structural safety with respect to cyclone & earthquake has been taken care as per the provisions of the NBC. The fire safety measures have also been adopted as per the clearance of the fire officer.

No provision of the Orissa Development Authorities Act, 1982 & Orissa Development Authorities Rules, 1983 and the Relevant Building Regulation has been violated. No requestion made, conditions imposed or orders issued with respect to the above quoted sanctioned plan have been transgressed in the course of the work. The building is fit for use for which it has been erected.

Signature of the Owner(s) & Developer

Yours faithfully

Signature of Rgd. Architects

Signature of the Regd. Str. Engr.

Form-VII

[(See Regulations 52(1)(v)]

Structural Stability Certificate

(To be furnished by the Registered Structural Engineer/Architect)

This is to certify that I/We/M/shas/have prepared the Structural design of the building over Plot No.....Mouza.....for Construction of storey buildings per the provisions of National Building Code. I undertake the responsibility with regard to supervision of the work at each stage of construction, (after laying of foundation & after casting of each floor) and submit the report to BDA to the effect that the building is being constructed confirming to the approved plan and as per the structural design prepared by me/firm as per the provisions of NBC taking into account the safety factors like cyclone & earth quake, etc. I/We will be responsible and liable for action by BDA/Government if the plan/design submitted contain misrepresentation or fraud and construction is made in deviation of approved plan or if there is structural failure & fire endangering the inmates & the public.

(i)

Signature and Seal

Registered Structural Engineer

(i)

Present & Permanent Address:

(ii)

Present & Permanent Address :

(iii)

Signature of the Plot Owner/Owners & Developer/Builder.

Form-VIII

Periodic Progress Report

[(See Regulation 54(4)]

(To be submitted by the Registered Structural Engineer/Architect/ Registered Civil Engineers Supervising the construction with counter signature of the plot owner/owners & developer)

From :

To

The Planning Member,

Bhubaneswar Development Authority,

Bhubaneswar.

Ref: (i) BDA approval letter No....dated....

(ii)

BPBA No.....

Sir/Madam,

I/We hereby certify that the construction of the building up to foundation, plinth/ground floor/floors of the buildings plot NoMouza.....has been supervised by me/us and has been constructed strictly confirming to the sanctioned plan and structural design as per the provision of NBC. The work has been done to my/our best satisfaction. All the materials used in construction of this building are strictly in accordance with BIS/ISI specifications and norms confirming to National Building Code, covering all the safety factors related to earthquake and cyclone. I will be responsible and liable for action by BDA/Government if there is any structural failure and Fire endangering the inmates and public.

Date :

Yours faithfully,

Signature & Seal

Address :Permanent :

Name & Designation of the Registered Architect

Present :

Signature of the Registered Architect

Address :Present :

Name & Designation of the Registered Structural Engineer

Permanent :

Address :Present :

Signature of Plot Owner/Developer

Permanent :

Form-IX

[See Regulation 10(1)]

Bhubaneswar Development Authority

No...../BDA, Bhubaneswar

Dated.....

Refusal Of Permission Under Sub-Section (3) Of Section 16 Of Orissa Development Authorities Act, 1982 For Undertaking Development Of Plot No In Mouza

To

Smt/Sri

His/Her reply to this, office letter No.....dated.....has not been found to be satisfactory. He/She has failed to show any cause in response to this office letter No.....Dated

Hence, in exercise of the powers under Sub-section (3) of Section-16 of the Orissa Development Authority Act, 1982,

permission to undertake development on plot No.....Mouza.....of Bhubaneswar/Khurda/Jatni Master plan area is hereby refused on the following giuunds.

1.

2.

.....

3.

.....

4.

.....

Two copies of the plans are retained in this office for record and reference and the rest are returned herewith.

By order

Authorised Officer

Memo No...../BDA, Bhubaneswar

Dated.....

Copy to Executive Officer, Bhubaneswar Municipal Corporation, Bhubaneswar/ Director of Estates, General Administration Department (in case of lease plots)

Authorised Officer

Form-X

Form For Occupancy Certificate

(See Regulation-68)

To

The work of erection, re-erection or alteration undertaken in respect of Plot No.....Village.....is/are completed under the supervision of.....Architect (licensee No.....) Structural Engineer (Licensee No.....) Supervisor (License No .) as per the completion certificate submitted.....dated.....On inspection it is observed that the erection, re-erection or alternation undertaken with respect to above plot(s) conform/ do not conform the approved plan and the conditions imposed vide letter No dated Hence in pursuance of Regulation 19/68 of BDA (Planning & Building Standards) Regulation the building(s) is permitted/not permitted for occupation subject to the following.

1.

2.

3.

One set of completion plan duly certified is returned herewith.

By order

Date

Authorised Officer

Bhubaneswar Development Authority

Related AI tags, queries and research notes

Translation